SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL ITEMS

OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30

1. REQUISITION NUMBER: EQPMCEA-26-0009

2. CONTRACT NO.:

3. AWARD/EFFECTIVE DATE:

4. ORDER NUMBER:

5. SOLICITATION NUMBER: 47PA0826R0001

6. SOLICITATION ISSUE DATE: 1/21/2026

7. FOR SOLICITATION INFORMATION CALL:
a. NAME: Mark West
b. TELEPHONE NUMBER *(No collect calls)*: 202-501-0465

8. OFFER DUE DATE/ LOCAL TIME: 2/19/2026 3:00 PM (EST)

9. ISSUED BY — CODE: PMCEA
PBS Office of Facilities Management
Retail Utility Services Branch
1800 F Street NW
Washington , DC 20405 USA

10. THIS ACQUISITION IS [X] UNRESTRICTED OR [ ] SET ASIDE: ______ % FOR:
[ ] SMALL BUSINESS
[ ] HUBZONE SMALL BUSINESS
[ ] SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS
[ ] WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM
[ ] EDWOSB
[ ] 8 (A)
NAICS: 221122
SIZE STANDARD:

11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED
[ ] SEE SCHEDULE

12. DISCOUNT TERMS:

13a. [ ] THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)

13b. RATING:

14. METHOD OF SOLICITATION: [ ] RFQ [ ] IFB [X] RFP

15. DELIVER TO — CODE: PMCEA
PBS Office of Facilities Management/Office of Policy and Services/Utilities Division
Retail Utility Services Branch
1800 F Street NW
Washington , DC 20405 USA

16. ADMINISTERED BY — CODE: PMCEA
PBS Office of Facilities Management/Office of Policy and Services/Utilities Division
Retail Utility Services Branch
1800 F Street NW
Washington , DC 20405 USA

17a. CONTRACTOR/ OFFEROR — CODE: — FACILITY CODE:

TELEPHONE NO.

17b. [ ] CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18a. PAYMENT WILL BE MADE BY — CODE:

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED [ ] SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	See below for additional information				
	(Use Reverse and/or Attach Additional Sheets as Necessary)				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Govt. Use Only)*

[ ] 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA [ ] ARE [ ] ARE NOT ATTACHED

[ ] 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ______ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

[ ] 29. AWARD OF CONTRACT: REF. ____________ OFFER DATED ____________. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR

31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*

30c. DATE SIGNED

31b. NAME OF CONTRACTING OFFICER *(Type or print)*: Mark West

31c. DATE SIGNED

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED:

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELPHONE NUMBER OF AUTHORZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)*	
		42c. DATE REC'D *(YY/MM/DD)*	42d. TOTAL CONTAINERS

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ATTACHMENT 17: ANNUAL USAGE ATTESTATION REPORT

NOTE: ALL QUESTIONS MUST BE SUBMITTED IN WRITING AND CAN BE SENT VIA:

ELECTRONIC MAIL: Mark2.West@gsa.gov, Brenna.Lanphear@gsa.gov, and Romon.Mccord@gsa.gov

SECTION A: SCOPE OF WORK

A.1 GENERAL

The U.S. General Services Administration (GSA or Government) is requesting proposals for the supply of all electricity supply commodity components up to the Delivery Points as specified in Attachment 13: Preliminary Exhibit 1 of this solicitation. The Delivery Point for such electricity shall be the independent system operator (ISO)/utility interconnect for the specific facilities identified in Attachment 13: Preliminary Exhibit 1 of this Solicitation. The Local Distribution Utility (LDU) (hereafter referred to as "Utility") will then distribute the electricity to the Government's individual meters. Pricing is to the Delivery Point and shall include all cost components specified in Attachment 3: Price Component Confirmation Tables of this solicitation. The Contractor shall supply the full requirements of such electricity for a term of up to sixty (60) months for the full monthly billing cycles. In the final Exhibit 1 files, the Government will place its requirements into pricing groups, as indicated in Attachment 13: Preliminary Exhibit 1. The service start date for all accounts shall begin with the first utility meter read date as specified by the utilities for the contract month specified in Attachment 13: Preliminary Exhibit 1. Multiple awards are contemplated for this solicitation. Contracts may be awarded at different times throughout the fiscal year as specified in Attachment 13: Preliminary Exhibit 1. Note the preliminary auction dates may be updated by GSA. Notice will be provided to Offerors who are deemed technically acceptable by GSA for each auction.

All quantities required to be supplied to facilities included in this contract shall be considered firm requirements ("firm" means electric supply that shall not be interrupted except as permitted under this contract) for delivery by the Contractor to the Delivery Point. The Contractor shall be liable for all costs assessed to facilities arising out of or relating to the non-delivery of firm requirements. The electricity provided under this contract shall conform to the tariff of the interstate/intrastate transmitting utility at the Delivery Point.

A.2 DEFINITIONS

For purposes of this contract, the following definitions apply to the contract and its attachments:

Balancing Authority: Also known as Control Area, is an electric power system or combination of electric power systems bounded by interconnection metering and telemetry to which a common generation control scheme is applied. For example, the Pennsylvania-New Jersey-Maryland Interconnection (PJM)) operates as one Balancing Authority.

Delivery Point: The Delivery Point for each account is specified in the final Exhibit 1 files.

Governing Applicable State Regulatory Entity: The board, agency, division, commission or other unit or subunit which has the general power to regulate and supervise the business of each public utility within its jurisdiction.

Kilowatt Hour or kWh: means 1000-watt hours and represents one kilowatt of power expended for one hour of time.

Local Distribution Utility (LDU): a company that distributes electricity to end users.

Locational Marginal Price (LMP): is defined as the marginal price for energy at the location where the energy is delivered or received. For accounting purposes, LMP is expressed in dollars per megawatt-hour ($/MWh).

Megawatt or MW: means a unit for measuring power that is equivalent to one million watts (equivalent to one joule per second).

Renewable Energy Certificate or REC: means the technology and environmental (non-energy) attributes that represent proof that 1 megawatt-hour (MWh) of electricity was generated from an eligible renewable energy resource, and can be sold separately from the underlying generic electricity with which it is associated. (Sec. VII of M-22-06). These are unique certificates that represent all the environmental attributes or benefits of a specific quantity of renewable generation. RECs are created when a renewable energy facility generates electricity.

Renewable Energy: means marine energy (as defined in 42 U.S.C. 17211), or electric energy produced from solar, wind, biomass, landfill gas, geothermal, municipal solid waste, or new hydroelectric generation capacity achieved from increased efficiency or additions of new capacity at an existing hydroelectric project. Renewable Energy and biomass shall have the definitions as specified by the Energy Policy Act of 2005, currently codified at 42 U.S.C. 15852(b)(2).

A.3 NOMINATING AND BALANCING RESPONSIBILITIES

It is the Contractor’s responsibility to conduct all required nominations on behalf of the facilities specified in the final Exhibit 1 files. The Contractor shall be fully familiar with the imbalance, transmission grid loss and line loss policies of both the utility and the interstate/intrastate transmission companies. The Contractor shall be liable for all costs arising out of or relating to these items.

A.4 CREDIT FOR DEFAULT SUPPLY SERVICE

If at any time, unless as a result of an Excusable Delay (see FAR 52.212-4(f)), an account covered by this contract is forced to accept default supply service from the utility serving in its capacity as the utility supplier of last resort or is forced to switch to the a Non-volunteer Provider of Last Resort solely as a result of action/inaction by the Contractor, the Contractor shall be responsible for payment of any additional costs incurred.

A.5 RISK OF LOSS

Risk of loss of electricity supplied under this contract shall remain with the Contractor prior to the Delivery Point and shall pass to the Government at and after the Delivery Point specified for each facility.

A.6 PROTECTION OF CONTRACT INFORMATION

The Government shall take the necessary and usual steps to maintain the confidentiality of information submitted by offerors prior to award of the contract. The Contractor is advised that the Government shall make all contract prices publicly available for the full contract period.

A.7 PAYMENT AND BILLING

The Contractor expressly agrees and acknowledges that each government agency to which supplies or services are provided pursuant to this contract shall be separately responsible for and liable to pay for any such supplies or services. For the avoidance of doubt, GSA shall be the responsible party for purposes of making payments for the accounts only where GSA is listed as the Agency in the final Exhibit 1 files.

The final Exhibit 1 will specify which accounts require dual billing and which require consolidated billing through the applicable utility.

For dual billed accounts, the Contractor shall submit a monthly invoice to the government agency for supplies and services rendered the previous month. The invoice should include the amount of kWhs measured at each meter and shall be consistent with the rules of the responsible state regulatory entity regarding issuance and format of bills. The Contractor shall use the utilities meters, meter readings, and billing cycles for the computation of bills. The Contractor shall establish a unique supplier account number for each end-use Government account and provide the corresponding utility account number on each monthly bill. The Contractor also expressly agrees and acknowledges they shall be required to submit invoices in accordance with each end use agency's billing requirements and systems which can include requirements for invoices to be submitted through online systems.

It shall be the Contractor's responsibility to know and understand the specific details and requirements for monthly billing, reporting, and coordination with the utilities. Payment shall be in accordance with FAR 32.9 (Prompt Payment). If payment is to be made by electronic funds transfer, the provisions of FAR 32.11 (ELECTRONIC FUNDS TRANSFER), including the clause at 52.232-33 shall apply. The Contractor shall be responsible for any late charges and/or penalties associated with prompt payment requirements that may be required by internal procedures and/or controls of the utility. The Government requires that each bill contain itemized account level detail on a building or facility basis. Each invoice shall include itemized charges levied by the utility.

Contractor's invoices shall match the company name and payment information for the Contractor in SAM.gov Unique Entity ID, Tax Identification Number and Cage Code specified in Attachment 2: Contractor Information.

For consolidated billing accounts, the Government shall pay the Contractor through monthly utility bills rendered by the applicable utility for each account included in this contract in accordance with the utilities' billing procedures, which are fully regulated by applicable state regulatory authority. It shall be the Contractor's responsibility to understand the specific details regarding the utilities' requirements for consolidated billing.

Each customer agency utilizing this base utility supply contract vehicle may have unique fund obligation and account-level task order processes. Regardless of what is stated in these agency account-level task orders, the base IDV contract awards the estimated volumes to the supplier for the full term of the base contract, subject to the band range referenced in Section A.13 LOAD CHANGES DURING THE TERM OF THE CONTRACT. If an agency fails to renew or fund an account-level task order during the term of the base contract, it will be treated as an early termination pursuant to the methodology provided for each ISO/RTO in Attachments 14 through16, Tailored Addendum To FAR 52.212-4(I) - Termination for the Government's Convenience.

A.8 EXTENSION PROVISIONS

The Government may request extension of performance, one or more times, in accordance with the existing contract terms and conditions, so long as the total additional performance period does not exceed twelve (12) months.

Pricing for the extension term will be in accordance with market movement comparing market prices on the day of contract award with settle prices for the previous trading day to the day the Government requests a contract extension.

For purposes of this solicitation, the comparison will be based on applicable pricing zones' Around the Clock (ATC) settle prices and term awarded for each pricing group on the day of the auction and settle prices for the previous trading day to the day an extension price is requested by the Government for the same pricing group or groups. The applicable pricing zone for each included account will be included in the final Exhibit 1 file.

The auction day settle prices and Government settle price extension requests by volume and at the time of extension request will be load-weighted with the applicable pricing zones' monthly contract volumes included in the final Exhibit 1 for each pricing group. The Government will provide a copy of the ATC settle prices and monthly volumes for each pricing group in the fully executed contract.

Pricing for the extension term shall be determined by calculating the percentage difference between the load-weighted auction day settlement price and settlement prices for the previous day to the day an extension price is requested and applying that percentage difference to the Energy Commodity Costs line item in Attachment 3 - Price Component Confirmation Tables included in this original auction price under the awarded contract. All other Price Components that are listed as Treatment "Fixed" and Include in Offer Price "Yes" in Attachment 3 will not be included in the calculation. Any Price Components listed as "No" under Include in Offer Price will also not be included in the calculation.

If the Contractor declines to extend, the contract will expire with the current performance period for the associated pricing group(s).

Notice of request for extension will be furnished to the Contractor not later than thirty (30) days prior to the expiration of the contract or any extension thereof. However, nothing precludes the Contractor from agreeing to an extension of the contract if the Government fails to issue the notice prior to the thirty (30) days.

Notice of request for extension of this contract shall be considered to have been accomplished at the time the Government sends notice via email to the Contractor.

A.9 RESERVED

A.10 ADDING AND DELETING FACILITIES TO THIS CONTRACT

It is possible that additional accounts not included in the final Exhibit 1 files may be added to the resultant contract(s). In that event, the Government shall provide the Contractor with the facility's estimated electric requirement (if available) and the two parties shall enter into good faith negotiations to determine a price. A bilateral modification shall be executed adding the line item on the Standard Form 30, Amendment of Solicitation/Modification of Award.

The Government may unilaterally remove any facilities at its discretion. If the Government removes any facilities listed in the final Exhibit 1 files, the Government shall provide the Contractor with a written notice 45 business days before any such removal. If accounts are removed, the methodology provided for each ISO/RTO in Attachments 14 through16, Tailored Addendum To FAR 52.212-4(l) - Termination for the Government's Convenience shall be used to calculate the early termination charges, if any. The provisions of this paragraph shall not apply to accounts with early end dates noted in the final Exhibit 1 files at the time of contract award(s).

A.11 ANNUAL USAGE ATTESTATION REPORTING

Annual Usage Attestation Report: No later than October 31st of each contract year, the Contractor shall complete and submit Attachment 17 - Annual Usage Attestation Report which shall affirm the kWh volume of electricity delivered under this Contract, to both the Contracting Officer (CO) and Contract Specialist (CS) at the email addresses specified in Section A.15. The annual reporting period shall be October 1 through September 30. While the annual report is due to GSA no later than October 31st each year; if needed, the Contractor may update the report no later than December 1st each year. The Contractor must state in the email where they submit their report as to whether the report is final or if an updated report will be provided to GSA.

A.12 RENEWABLE POWER FOR FACILITIES IN THIS CONTRACT

Renewable Energy may not be required for every contract awarded under this solicitation. The final Exhibit 1 files will indicate for which accounts the Contractor is responsible for providing Renewable Energy and in what amounts. Contractors are required to review the final Exhibit 1 files and include Renewable Energy in their offer, if applicable. Where applicable, the Contractor shall deliver RECs derived from Renewable Energy as defined above equal to the percentage of total usage required for all accounts included as indicated in the final Exhibit I files. The Renewable Energy requirement is load-following, and the number of RECs delivered will be based on actual usage for each account. The

REC content requirements are in addition to any Renewable Energy required to comply with the State's Renewable Portfolio Standards (RPS) requirements, if any, during the term of any resultant contract(s). The Renewable Energy that the Contractor provides must come from renewable resources that have been placed in service within ten (10) years prior to the start of the Government's fiscal year for each year of the contract. For the contract's first year, resources will need to have been placed in service on or after October 1, 2016.

Annual Renewable Attestation Report: No later than October 31st of each contract year, the Contractor shall complete and submit the Annual Renewable Attestation Report (Attachments 7 through 11), which shall affirm delivery of Renewable Energy required by this Contract, to both the Contracting Officer (CO) and Contract Specialist (CS) at the email addresses specified in Section A.15. The annual reporting period shall be October 1 through September 30. While the annual report is due to GSA no later than October 31st each year; if needed, the Contractor may update the report no later than December 1st each year. Contractor must state in the email where they submit their report as to whether the report is final or if an updated report will be provided to GSA.

Renewable Energy Vintage: To qualify as an eligible REC under this contract, the Renewable Energy must be generated during the Government's applicable fiscal year calendar which is October 1 through September 30 for each year of the contract and the six (6) months immediately preceding that time period and the three (3) months immediately following that time period (e.g., April 1, 2025 through December 31, 2026 for fiscal year 2026).

Renewable Cost Breakdown: Upon contract award(s), the offeror shall be able to provide a breakdown, showing what portion of their price (on a $/KWh basis) is attributable to the renewable requirements.

A.13 LOAD CHANGES DURING THE TERM OF THE CONTRACT

As indicated in Section A.1, this contract is for the full requirements of each account at the Delivery Points. The full requirements are expressed as estimates in the final Exhibit 1 files of the solicitation. The Government does not estimate that its aggregate load will change in a significant manner throughout the term of this contract unless noted in the final Exhibit 1 files. An annual change in the aggregate kWh consumption of each pricing group in excess of twenty percent (20%) each contract year shall be considered significant. The historical volumes are given in the final Exhibit 1 files, and these volumes will be used in determining annual changes. In the event of a significant change in contract load, the Government agrees, if requested by the Contractor, to negotiate in good faith with the Contractor to equitably adjust the contract price to account for the incremental costs, if any, associated with such load change beyond the twenty percent (20%) measurement threshold. Any proposed adjustments to contract pricing shall compare the contract price with the market price at the time of usage deviation to arrive at an adjustment to contract pricing. The Government shall notify the Contractor of any significant anticipated load changes as soon as it becomes aware of such anticipated changes.

A.14 ELECTRICITY REGULATORY CHANGES

The contract price includes all applicable Federal, State, and local regulations including Independent System Operators/Regional Transmission Organizations (ISO/RTO) charges expected to be in effect and applicable to this contract at the time of contract award(s).

After-Imposed Charges Due to a Change of Federal, State, or Local Regulation, means any new or modified Federal, State, and/or local regulation including ISO/RTO charges on the transactions covered by this contract that result in new or increased charges that the Contractor is required to pay or bear as the result of legislative, judicial, regulatory or administrative action taking effect after the each contract award date. This includes all Price Components specified as "fixed" in Attachment 3: Price Component Confirmation Tables.

The contract price shall be increased by the amount of any after-imposed charges due to a change of Federal, State, or local regulation, provided the Contractor warrants in writing that no amount for such newly imposed Federal, State, and local regulation or rate increase was included in the contract price, as a contingency reserve or otherwise, and that the Contractor provides sufficient documentation to support the increase.

After-Relieved Charges Due to a Change of Federal, State, or Local Regulation, means any Federal, State, and/or local regulation including ISO/RTO charges on the transactions covered by this contract that the Contractor is no longer required to pay or bear, or for which the Contractor obtains a refund or reduction, as the result of legislative, judicial, regulatory or administrative action taking effect after each contract award date.

The contract price shall be decreased by the amount of any after-relieved charges due to a change of Federal, State, or local regulation.

Any increases or decreases in the contract price shall be accomplished by a bilateral contract modification. In the event that the Government and the Contractor cannot agree to an acceptable contract adjustment, the Government shall unilaterally adjust the contract price via modification subject to the Disputes provisions of FAR 52.212-4(d) incorporated in the contract.

The ceiling price for after-imposed regulatory costs is limited to 50% of the contract price.

The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth has been increased, any costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the costs had been incurred after the increase in the ceiling price.

A.15 CONTRACT ADMINISTRATION

After award, this contract shall be administered by the GSA Retail Utility Procurement Branch. The CO and CS for the administration of this contract is:

Mark West, Contracting Officer
Retail Utility Procurement Branch
Retail Utility Services Division
1800 F Street, NW, Washington, D.C. 20405
202-710-4642 cell
202-501-0465 office
Mark2.West@gsa.gov

Brenna Lanphear, Contract Specialist
Retail Utility Procurement Branch
Retail Utility Services Division
1800 F Street, NW, Washington, D.C. 20405
214-707-6483 cell
Brenna.Lanphear@gsa.gov

Romon McCord, Contract Specialist
Retail Utility Procurement Branch
Retail Utility Services Division
1800 F Street, NW, Washington, D.C. 20405
470-421-6217 cell
Romon.McCord@gsa.gov

A.16 AUCTION PROCESS

The Government shall use an internet-based transaction platform provided by the GSA Energy Procurement Support Contractor designated by GSA (currently Enel X, Inc.) to obtain pricing for this procurement. The Contractor shall submit pricing to GSA using the platform in accordance with the instructions in Section D and the GSA Energy Procurement Support Contractor designated by GSA (currently Enel X, Inc.) website. All prices submitted to the transaction platform shall be in accordance with the provisions of the solicitation. It shall be the responsibility of the offeror to understand both the rules and the mechanics of the transaction platform.

A.17 ENERGY PROCUREMENT SUPPORT CONTRACTOR FEE

The Contractor hereby agrees to pay a fee in the amount of $0.0007 per kWh for all usage billed under this contract. The Contractor shall pay the fee directly to the GSA Energy Procurement Support Contractor designated by GSA (currently Enel X, Inc.) in accordance with the agreement, if any, executed between the Contractor and the GSA Energy Procurement Support Contractor. If the Contractor does not have an existing fee agreement with the GSA Energy Procurement Support Contractor, they will be required to execute one no later than 90 days after each contract award date. The Contractor expressly recognizes and understands that the Government is not responsible for paying the fee to the GSA Energy Procurement Support Contractor. To the extent a dispute occurs between the Contractor and the GSA Energy Procurement Support Contractor regarding the fee, any such dispute shall be handled in accordance with the agreement executed between the Contractor and the GSA Energy Procurement Support Contractor.

A.18 DAMAGES FOR MISSING CONTRACT START DATE

In the event that the contract start date for electric supply is missed due solely to the fault of the Contractor and an account(s) is required to switch to default supply service from the utility serving in its capacity as the utility supplier of last resort or is forced to the Non-volunteer Provider of Last Resort, then the Contractor shall be liable for the difference, if any, between the contract rate and the rates billed by the utility or Non-volunteer Provider of Last Resort. Subject to the approval of the Contracting Officer, the Contractor shall issue an equivalent credit to the Government on a future invoice. This credit shall be issued within sixty (60) days of the date the Contractor begins serving the account.

A.19 CONTRACT TERM

The Government will place its requirements into multiple pricing groups which will be listed in the final Exhibit 1 files. The initial term of this contract shall be for the number of full billing cycles specified in the final Exhibit 1 files for each pricing group. The service start and end dates shall be established by either the date specified in the auction schedule included in the final Exhibit 1 files or the next meter read date immediately following the date specified in the auction schedule pursuant to specific utility enrollment procedures. It will be the Contractor's responsibility to ensure that the delivery start date complies with these terms, and any penalties resulting from missing the required service start date(s) shall be borne by the Contractor.

A.20 EXHIBIT I

The final Exhibit 1 files will consist of an Excel spreadsheet that specifies the accounts included in each auction and provides aggregate estimated totals. The final Exhibit 1 files may be tailored for each auction via an amendment to this solicitation. The Government will make every effort to provide the final Exhibit 1 files at least thirty (30) calendar days prior to each auction. It is the Offeror's responsibility to ensure it references the most current Exhibit 1 files. For each account, the following information is provided if available:

(a) Utility rate schedule;
(b) Utility account number;
(c) Agency/account holder;
(d) General Service Location;
(e) Utility;
(f) Monthly consumption (kWh);
(g) Registered monthly on-peak demand (KW) per utility tariff definition;
(h) Registered monthly maximum demand (KW) per utility tariff definition;
(i) Monthly on-peak KWH per utility tariff definition;
(j) Monthly interim KWH per utility tariff definition;
(k) Monthly off-peak KWH per utility tariff definition;
(l) Monthly billing days;
(m) Monthly load factor;
(n) Range of meter read dates throughout the year;
(o) Whether hourly interval data is provided for the account (information on separate spread sheets);
(p) The first and last monthly meter reads; and
(q) The amount of Renewables required for each account, if applicable.

An Attachment 13: Preliminary Exhibit 1 has been provided with this solicitation that includes information regarding the accounts GSA plans to solicit pricing for under this solicitation and projected auction dates. Note per this file, "Prior to any auctions taking place, GSA will be releasing updated Exhibit 1 files that include specific auction dates, EnelX RFP#s, auction end times for each RFP, the GSA Pricing Product requested, the term or terms requested for each pricing group and updated account information including monthly usage data, whether interval data is available for each account from the utility, capacity and transmission values (if applicable), etc."

Final Exhibit 1 files will be provided before each auction event. As this solicitation includes 354 end-use utility accounts for forty-four (44) agencies in eight (8) states and fourteen (14) utility service territories; GSA is currently working with its customers to confirm the final terms, pricing products and renewable requirements they want to solicit for their included accounts. Once that process is complete, GSA will start releasing final Exhibit 1 files prior to each auction date.

A.21 POST AWARD ENROLLMENT AND SUPPLIER ACCOUNT NUMBER CONFIRMATION REPORTING

The winning Contractor(s) will be required to provide a spreadsheet clearly identifying each utility account number being served as a result of the contract award, the utility meter read start date for each account. For all accounts that require dual billing, the Contractor also will provide the supplier account number that will be included on the Contractor's bills for each account. This spreadsheet will be due no later than fifteen (15) calendar days prior to the start month for each account.

SECTION B: TECHNICAL REQUIREMENTS FOR SPECIFIC MARKETS

Offerors may request to be determined technically acceptable in multiple utility service territories. Offerors may participate in auctions for those utility service territories where they have been determined technically acceptable. Offerors interested in being approved to participate in the utility service territories listed in this solicitation, shall not only comply with the technical requirements in Section B of this solicitation, but also with the technical requirements specific to the utilities found in Attachments 14 through 16. Offerors not interested in being approved for certain utilities are not required to meet the technical requirements specific to those utilities.

SECTION C: CONTRACT CLAUSES

In the event of any inconsistencies between non-mandatory FAR and GSAM clauses incorporated by reference herein or elsewhere and any clauses set forth in full text in this Contract, the full text clauses shall control.

C.1 CLAUSES INCORPORATED BY REFERENCE

FAR 52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this address:

http://www.acquisition.gov/content/regulations

(End of Clause)

The following FAR clauses are incorporated by reference:

FAR	Clause Title	IAW	Date
52.204-7	System for Award Management	FAR 4.1105(a)(1)	Nov 2024
52.204-13	System for Award Management Maintenance	FAR 4.1105(b)	Oct 2018
52.204-16	Commercial and Government Entity Code Reporting	FAR 4.1804(a)	Aug 2020
52.204-17	Ownership or Control of Offeror	FAR 4.1804(b)	Aug 2020
52.204-18	Commercial and Government Entity Code Maintenance	FAR 4.1804(c)	Aug 2020
52.204-19	Incorporation by Reference of Representations and Certifications	FAR 4.1202(b)	Dec 2014
52.204-22	Alternative Line Item Proposal	FAR 4.1008	Jan 2017
52.204-28	Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts	FAR 4.2306(a)	Dec 2023
52.227-14	Rights in Data-General	FAR 27.409	May 2014
52.232-18	Availability of Funds	FAR 32.706-1(a)	Apr 1984
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	FAR 32.009-2	Mar 2023
52.242-13	Bankruptcy	FAR 42.903	Jul 1995

C.2 CLAUSES INCORPORATED BY FULL TEXT

52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment (Nov 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-Commercial Products or Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on *Contracting* for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition*.

(1) Section 889(a)(1)(A) of the John S. McCain *National Defense* Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an *executive agency* on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential *component* of any system, or as critical technology as part of any system. Nothing in the prohibition *shall* be construed to—

(i) Prohibit the head of an *executive agency* from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain *National Defense* Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an *executive agency* on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential *component* of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition *shall* be construed to—

(i) Prohibit the head of an *executive agency* from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The *Offeror shall* review the list of excluded parties in the *System for Award Management (SAM)* (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(d) *Representation.* The *Offeror* represents that—

(1) It □ will, □ will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this *solicitation*. The *Offeror shall* provide the additional disclosure information required at paragraph (e)(1) of this section if the *Offeror* responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the *Offeror* represents that—

It □ does, □ does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The *Offeror shall* provide the additional disclosure information required at paragraph (e)(2) of this section if the *Offeror* responds "does" in paragraph (d)(2) of this section.

(e) *Disclosures.*

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the *Offeror* has responded "will" in the representation in paragraph (d)(1) of this provision, the *Offeror shall* provide the following information as part of the *offer*:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, *unique entity identifier*, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the *Offeror* has responded "does" in the representation in paragraph (d)(2) of this provision, the *Offeror shall* provide the following information as part of the *offer*:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, *unique entity identifier*, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

FAR 52.204-30 Federal Acquisition Supply Chain Security Act Orders—Prohibition (Dec 2023) Alternate I (DEC 2023)

(a) Definitions. As used in this clause—

Covered article, as defined in 41 U.S.C. 4713(k), means—

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring the removal of covered articles from executive agency information systems or the exclusion of one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201–1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders applicable to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders applicable to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders applicable to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast

Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Reasonable inquiry means an inquiry designed to uncover any information in the entity's possession about the identity of any covered articles, or any products or services produced or provided by a source. This applies when the covered article or the source is subject to an applicable FASCSA order. A reasonable inquiry excludes the need to include an internal or third-party audit.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

(b) *Prohibition.* (1) Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by any applicable FASCSA orders identified by the checkbox(es) in this paragraph (b)(1).

Yes ☑ No ☐ DHS FASCSA Order

Yes ☑ No ☐ DoD FASCSA Order

Yes ☑ No ☐ DNI FASCSA Order

(2) The Contractor shall search for the phrase “FASCSA order” in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders identified in paragraph (b)(1).

(3) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resultant contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 4.2304(c)). However, see paragraph (c) of this clause.

(5)(i) If the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification, then the Contractor shall disclose the following:

(A) Name of the product or service provided to the Government;

(B) Name of the covered article or source subject to a FASCSA order;

(C) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied or supplies the covered article or the product or service to the Offeror;

(D) Brand;

(E) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(F) Item description;

(G) Reason why the applicable covered article or the product or service is being provided or used;

(ii) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (b)(5)(i) to determine if any waiver is warranted. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise covered by a FASCSA order and to instead pursue other appropriate action.

(c) *Notice and reporting requirement.* (1) During contract performance, the Contractor shall review

SAM.gov at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (b) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance.

(3)(i) The Contractor shall submit a report to the contracting office as identified in paragraph (c)(3)(ii) of this clause, if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s) identified in paragraph (b) of this clause, or a new FASCSA order identified in paragraph (c)(2) of this clause. For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(ii) If a report is required to be submitted to a contracting office under (c)(3)(i) of this clause, the Contractor shall submit the report as follows:

(A) If a Department of Defense contracting office, the Contractor shall report to the website at https://dibnet.dod.mil.

(B) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(4) The Contractor shall report the following information for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order, pursuant to paragraph (c)(3)(i) of this clause:

(i) Within 3 business days from the date of such identification or notification:

(A) Contract number;

(B) Order number(s), if applicable;

(C) Name of the product or service provided to the Government or used during performance of the contract;

(D) Name of the covered article or source subject to a FASCSA order;

(E) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Contractor;

(F) Brand;

(G) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);

(H) Item description; and

(I) Any readily available information about mitigation actions undertaken or recommended.

(ii) Within 10 business days of submitting the information in paragraph (c)(4)(i) of this clause:

(A) Any further available information about mitigation actions undertaken or recommended.

(B) In addition, the Contractor shall describe the efforts it undertook to prevent submission or use of the covered article or the product or service produced or provided by a source subject to an applicable FASCSA order, and any additional efforts that will be incorporated to prevent future submission or use of the covered article or the product or service produced or provided by a source that is subject to an applicable FASCSA order.

(d) Removal. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that is subject to an applicable FASCSA order.

(e) Subcontracts. (1) The Contractor shall insert the substance of this clause, including this paragraph (e) and excluding paragraph (c)(1) of this clause, in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products and commercial services.

(2) The Government may identify in the solicitation additional FASCSA orders that are not in SAM, which are effective and apply to the contract and any subcontracts and other contractual instruments under the contract. The Contractor or higher-tier subcontractor shall notify their subcontractors, and suppliers under other contractual instruments, that the FASCSA orders in the solicitation that are not in SAM apply to the contract and all subcontracts.

(End of clause)

52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) *Definitions*. As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceeding at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than $10,000,000" means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [_] has [_] does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active 52.212-4 registration in the System for Award Management which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services (Sep 2023) Addendum to FAR 52.212-1

The offeror agrees to hold the prices offered in response to this solicitation until 1:30 p.m. EST on the auction date specified in the Exhibit 1 for each auction of which the Offeror submits pricing.

(End of provision)

52.212-2 EVALUATION—Commercial Products And Commercial Services (Nov 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

The basis for this evaluation is prescribed in Section D herein.

(b) *Options*. The Government shall evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

FAR 52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (Nov 2023)

(a) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights-

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) Definitions. The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include-

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer-System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer-Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.-

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C.3903) and prompt payment regulations at 5 CFR Part 1315.

(3) Electronic Funds Transfer (EFT). If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified

payment date if an electronic funds transfer payment is made.

(5) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall-

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the-

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) Interest.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by 33.211 if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the

Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

Tailored Addendum To FAR 52.212-4 Contract Terms and Conditions – Commercial Items (FAR DEVIATION) (JAN 2023) [Reference GSAM 512.301(b)]

(k) TAXES.

(1) Except as otherwise set forth in this subsection (k), the contract price includes all applicable Federal, State, and local taxes and duties.

For accounts located in New York, the Contractor may submit New York Gross Receipts Tax (GRT) to the Government at the supplier's cost as a separate line item on monthly bills, as indicated in Attachment 3: Price Component Confirmation Tables.

For accounts located in Pennsylvania, the Contractor may submit Pennsylvania Gross Receipts Tax (GRT) to the Government at the supplier's cost as a separate line item on monthly bills., as indicated in Attachment 3: Price Component Confirmation Tables.

(2) After-imposed Federal, State, or local tax, means any new or increased Federal, State, or local excise tax or duty, or tax that was exempted or excluded on the contract award date(s) but whose exemption was later revoked or reduced, or whose computation was later changed during the contract period, on the transactions or property covered by this contract that the Contractor is required to pay or bear as the result of legislative, judicial, or administrative action taking effect after the contract date. It does not include social security tax, income tax, or other employment taxes.

(2)(a) The contract price shall be increased by the amount of any after-imposed tax, provided the Contractor warrants, in writing, that no amount for such newly imposed Federal, State, or local excise tax or duty or rate increase was included in the contract price, as a contingency reserve or otherwise.

(3) After-relieved Federal, State, or local tax, means any amount of Federal, State, or local excise tax or duty that would otherwise have been payable on the transactions or property covered by this contract, but which the Contractor is not required to pay or bear, or for which the Contractor obtains a refund or drawback, as the result of legislative, judicial, or administrative action taking effect after the contract date. It does not include social security tax, income tax, or other employment taxes.

(3)(a) The contract price shall be decreased by the amount of any after-relieved tax

(4) Any increases or decreases in the contract price shall be accomplished by a bilateral contract modification. In the event that the Government and the Contractor cannot agree to an acceptable contract adjustment, the Government will unilaterally adjust the contract price via modification subject to the Disputes provisions of FAR 52.212-4(d) incorporated in the contract.

(5) The ceiling price for tax-related costs is limited to 20% of the contract price.

(5)(a) The Government will not be obligated to pay the Contractor any amount in excess of the ceiling price and the Contractor shall not be obligated to continue performance if to do so would exceed the ceiling price set forth in the Schedule, unless and until the Contracting Officer notifies the Contractor in writing that the ceiling price has been increased and specifies in the notice a revised ceiling that shall constitute the ceiling price for performance under this contract. When and to the extent that the ceiling price set forth has been increased, any costs incurred by the Contractor in excess of the ceiling price before the increase shall be allowable to the same extent as if the costs had been incurred after the increase in the ceiling price.

(l) TERMINATION FOR THE GOVERNMENT'S CONVENIENCE. See Attachments 14 through 16 for the applicable termination language and calculations.

(n) **TITLE.** Title to the electricity supplied by the Contractor under this contract shall pass to the Government upon delivery at the Delivery Point. The Contractor warrants that the electricity delivered to the Government under this contract will be free and clear of any liens, claims and encumbrances arising prior to delivery at the Delivery Point.

(o) **WARRANTY.** The Contractor warrants and implies that the electricity delivered hereunder conforms to the tariff of the utility at the Delivery Point.

(End of Tailored Addendum)

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Other compliances. The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(t) [Reserved]

(v) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (Oct 2025)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations

Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (Aug 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (Oct 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:priate.]

X (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (Jun 2020), with Alternate I

(Nov 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

X (2) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509)).

__ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (Jun 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

X (4) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

X (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (Jun 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

__ (6) [Reserved].

__ (7) 52.204-14, Service Contract Reporting Requirements (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

__ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (Oct 2016) (Pub. L. 111-117, section 743 of Div. C).

X (9) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

X (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules,Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (Dec 2023) (Pub. L. 115–390, title II).

X (11) (i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

__ (ii) Alternate I (Dec 2023) of 52.204-30.

X (12) 52.209-6, Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment, or Voluntarily Excluded. (Jan 2025) (31 U.S.C. 6101 note).

X (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (Oct 2018) (41 U.S.C. 2313).

__ (14) [Reserved].

__ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (Oct 2022) (15 U.S.C. 657a).

__ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Oct 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

__ (17) [Reserved]

__ (18) (i) 52.219-6, Notice of Total Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-6.

__ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (Nov 2020) (15 U.S.C. 644).

__ (ii) Alternate I (Mar 2020) of 52.219-7.

X (20) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)).

__ (21) (i) 52.219-9, Small Business Subcontracting Plan (Jan 2025) (15 U.S.C. 637(d)(4)).

X (ii) Alternate I (Nov 2016) of 52.219-9.

__ (iii) Alternate II (Nov 2016) of 52.219-9.

__ (iv) Alternate III (Jun 2020) of 52.219-9.

__ (v) Alternate IV (Sep 2023) of 52.219-9.

__ (22) (i) 52.219-13, Notice of Set-Aside of Orders (Mar 2020) (15 U.S.C. 644(r)).

__ (ii) Alternate I (Mar 2020) of 52.219-13.

__ (23) 52.219-14, Limitations on Subcontracting (Oct 2022) (15 U.S.C. 657s).

__ (24) 52.219-16, Liquidated Damages—Subcontracting Plan (Sep 2021) (15 U.S.C. 637(d)(4)(F)(i)).

__ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (Feb 2024) (15 U.S.C. 657f).

X (26) (i) 52.219-28, Post Award Small Business Program Rerepresentation (Jan 2025)(15 U.S.C. 632(a)(2)).

__ (ii) Alternate I (Mar 2020) of 52.219-28.

__ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Oct 2022) (15 U.S.C. 637(m)).

__ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (Oct 2022) (15 U.S.C. 637(m)).

__ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (Mar 2020)(15 U.S.C. 644(r)).

__ (30) 52.219-33, Nonmanufacturer Rule (Sep 2021) (15 U.S.C. 637(a)(17)).

X (31) 52.222-3, Convict Labor (Jun 2003) (E.O.11755).

__ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (Jan 2025).

X (33) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

X (34) (i) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

__ (ii) Alternate I (Feb 1999) of 52.222-26.

X (35) (i) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

__ (ii) Alternate I (Jul 2014) of 52.222-35.

X (36) (i) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

__ (ii) Alternate I (Jul 2014) of 52.222-36.

__ (37) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

X (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec

2010) (E.O. 13496).

X (39) (i) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

__ (ii) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

X (40) 52.222-54, Employment Eligibility Verification (Jan 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

__ (41) (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA–Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off the-shelf items.)

__ (ii) Alternate I (May 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

X (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (May 2024) (42 U.S.C. 7671, et seq.).

X (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (May 2024) (42 U.S.C. 7671, et seq.).

__ (44) 52.223-20, Aerosols (May 2024) (42 U.S.C. 7671, et seq.).

__ (45) 52.223-21, Foams (May 2024) (42 U.S.C. 7671, et seq.).

__ (46) 52.223-23, Sustainable Products and Services (May 2024) (E.O. 14057, 7 U.S.C. 8102, U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).

X (47) (i) 52.224-3 Privacy Training (Jan 2017) (5 U.S.C. 552 a).

__ (ii) Alternate I (Jan 2017) of 52.224-3.

__ (48) (i) 52.225-1, Buy American-Supplies (Oct 2022) (41 U.S.C. chapter 83).

__ (ii) Alternate I (Oct 2022) of 52.225-1.

__ (49) (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.

__ (ii) Alternate I [Reserved].

__ (iii) Alternate II (Jan 2025) of 52.225-3.

__ (iv) Alternate III (Feb 2024) of 52.225-3.

__ (v) Alternate IV (Oct 2022) of 52.225-3.

__ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, et seq., 19 U.S.C. 3301 note).

__ (51) 52.225-13, Restrictions on Certain Foreign Purchases (Feb 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

__ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

__ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).

__ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (Nov 2007) (42 U.S.C. 5150).

__ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024) (E.O. 13513).

__ (56) 52.229-12, Tax on Certain Foreign Procurements (Feb 2021).

__ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (Nov 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

__ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (Oct 2018) (31 U.S.C. 3332).

__ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).

__ (61) 52.232-36, Payment by Third Party (May 2014) (31 U.S.C. 3332).

__ (62) 52.239-1, Privacy or Security Safeguards (Aug 1996) (5 U.S.C. 552a).

X (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

__ (64) 52.242-5, Payments to Small Business Subcontractors (Jan 2017) (15 U.S.C. 637(d)(13)).

__ (65) (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

__ (ii) Alternate I (Apr 2003) of 52.247-64.

__ (iii) Alternate II (Nov 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

__ (1) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter67).

__ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

__ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29U.S.C.206 and 41 U.S.C. chapter 67).

__ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

__ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

__ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

__ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).

X (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (Jan 2025) (49 U.S.C. 40118(g))

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

(i) 52.203-13, Contractor Code of Business Ethics and Conduct (Nov 2021) (41 U.S.C. 3509).

(ii) 52.203-17, Contractor Employee Whistleblower Rights (Nov 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (Dec 2023) (Section 1634 of Pub. L. 115-91).

(v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (Nov 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(vi) 52.204-27, Prohibition on a ByteDance Covered Application (Jun 2023) (Section 102 of Division R of Pub. L. 117-328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition. (Dec 2023) (Pub. L. 115–390, title II).

(B) Alternate I (Dec 2023) of 52.204 -- 30.

(viii) 52.219-8, Utilization of Small Business Concerns (Jan 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (Apr 2015).

(x) 52.222-26, Equal Opportunity (Sep 2016) (E.O.11246).

(xi) 52.222-35, Equal Opportunity for Veterans (Jun 2020) (38 U.S.C. 4212).

(xii) 52.222-36, Equal Opportunity for Workers with Disabilities (Jun 2020) (29 U.S.C. 793).

(xiii) 52.222-37, Employment Reports on Veterans (Jun 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (Aug 2018) (41 U.S.C. chapter 67).

(xvi)

(A) 52.222-50, Combating Trafficking in Persons (Oct 2025) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (Mar 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (May 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (Jan 2025) (E.O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022).

(xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022) (E.O. 13706).

(xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).

(B) Alternate I (Jan 2017) of 52.224-3.

(xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.

(xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (Nov 2024) (Sections 1821-1826, Pub. L. 118-31, 41U.S.C. 3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-18 Ordering. (AUG 2020)
[Reference FAR 16.506(a)]

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **10/01/2025** through **09/30/2026**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when—

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either—

(i) Posts a copy of the delivery order or task order to a government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-21 Requirements (Oct 1995)

(a) This is a requirements contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies or services specified in the Schedule are estimates only and are not purchased by this contract. Except as this contract may otherwise provide, if the Government’s requirements do not result in orders in the quantities described as "estimated" or "maximum" in the Schedule, that fact shall not constitute the basis for an equitable price adjustment.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. Subject to any limitations in the Order Limitations clause or elsewhere in this contract, the Contractor shall furnish to the Government all supplies or services specified in the Schedule and called for by orders issued in accordance with the Ordering clause. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(c) Except as this contract otherwise provides, the Government shall order from the Contractor all the supplies or services specified in the Schedule that are required to be purchased by the Government activity or activities specified in the Schedule.

(d) The Government is not required to purchase from the Contractor requirements in excess of any limit on total orders under this contract.

(e) If the Government urgently requires delivery of any quantity of an item before the earliest date that delivery may be specified under this contract, and if the Contractor will not accept an order providing for the accelerated delivery, the Government may acquire the urgently required goods or services from another source.

(f) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; provided, that the Contractor shall not be required to make any deliveries under this contract after Contract performance end date. [insert date].

(End of clause)

52.233-2 Service of Protest (Sept 2006)

(a) Protests, as defined in Section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Mark West, Contracting Officer
Retail Utility Procurement Branch
Utility Services Division
U.S. General Services Administration, Public Buildings Service
Office of Facilities Management
1800 F Street, NW, Washington, D.C. 20405
202-710-4642 cell, 202-501-0465 office
Mark2.West@gsa.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

52.252-6 Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any General Services Administration Acquisition Manual (GSAM) Regulation Supplement (48 CFR Chapter 5) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

C.3 GSAM/R Provisions Incorporated by Reference

The following GSAM clauses are incorporated by reference:

GSAM	Clause Title	IAW	Date
552.217-71	Notice Regarding Option(s)	GSAM 517.208(b)	Nov 1992
552.232-23	Assignment of Claims	GSAM 532.806	Sep 1999
552.232-39	Unenforceability of Unauthorized Obligations	GSAM 532.706-3	Feb 2018

C.4 GSAM Clauses Incorporated by Full Text

552.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (FAR DEVIATION 52.212-4)(Jan 2023))

(g)(2) The due date for making invoice payments by the designated payment office is the later of the following two events:

(i) The 10th day after the designated billing office receives a proper invoice from the Contractor. If the designated billing office fails to annotate the invoice with the date of receipt at the time of receipt, the invoice payment due date shall be the 10th day after the date of the Contractor’s invoice; provided the Contractor submitted a proper invoice and no disagreement exists over quantity, quality, or Contractor compliance with contract requirements.

(ii) The 10th day after Government acceptance of supplies delivered or services performed by the Contractor.

(s) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, Unauthorized Obligations, and Commercial Supplier Agreements - Unenforceable Clauses paragraphs of this clause.

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any commercial supplier agreements as amended by the Commercial Supplier Agreements -Unenforceable Clauses provision.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449. (8)

(8) Other documents, exhibits, and attachments.

(9) The specification.

(u) Unauthorized Obligations.

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any commercial supplier agreement (as defined in 502.101) that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such language, provision, or clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(w) *Commercial supplier agreements unenforceable clauses.* When any supply or service acquired under this contract is subject to a commercial supplier agreement (as defined in 502.101), the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, “this agreement” means the commercial supplier agreement:

(1) Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:

(i) *Applicability*. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument (including all contracts, task orders, and delivery orders under FAR 12).

(ii) *End user.* This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.

(iii) *Law and disputes*. This agreement is governed by Federal law.

(A) Any language purporting to subject the U.S. Government to the laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.

(B) Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.

(C) Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.

(iv) *Continued performance*. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while continuing performance as set forth in subparagraph (d) (Disputes).

(v) *Arbitration; equitable or injunctive relief*. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute (e.g., Prompt Payment Act or Equal Access to Justice Act).

(vi) *Updating terms*. (A) After award, the contractor may unilaterally revise commercial supplier agreement terms: if they are not material. A material change is defined as:

(1) Terms that change Government rights or obligations;

(2) Terms that increase Government prices;

(3) Terms that decrease overall level of service; or

(4) Terms that limit any other Government right addressed elsewhere in this contract.

(B) For revisions that will materially change the terms of the contract, the revised commercial supplier agreement shall be incorporated into the contract using a bilateral modification.

(C) Any agreement license terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this contract shall not be enforceable against the Government, and the Government shall not be deemed to have consented to them.

(vii) *No automatic renewals*. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative.

(viii) *Indemnification*. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(ix) *Audits*. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:

(A) Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice shall comply with the proper invoicing requirements specified in the underlying Government contract or order.

(B) This charge, if disputed by the ordering activity, will be resolved in accordance with subparagraph (d) (Disputes) through the Disputes clause at 552.212-4(d); no payment obligation shall arise on the part of the ordering activity until the conclusion of the dispute process.

(C) Any audit requested by the contractor will be performed at the contractor's expense, without reimbursement by the Government.

(x) *Taxes or surcharges*. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract or order and, in any event, shall be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.

(xi) *Non-assignment*. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted under subparagraph (b) of this clause.

(xii) *Confidential information*. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed “confidential information.” Issues regarding release of “unit pricing” will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.

(2) If any language, provision, or clause of this agreement conflicts or is inconsistent with the preceding paragraph (w)(1), the language, provisions, or clause of paragraph (w)(1) shall prevail to the extent of such inconsistency.

(End of clause)

552.212-71 Contract Terms and Conditions Applicable to GSA Acquisitions of Commercial Products and Commercial Services (Oct 2023)

(1)The Contractor agrees to comply with any clause that is incorporated herein by reference to implement agency policy applicable to acquisition of commercial products, including commercial components, and commercial services. The clause in effect based on the applicable regulation cited on the date the solicitation is issued applies unless otherwise stated herein. The GSAR clauses in paragraph (b) of this section are incorporated by reference:

(2) *Clauses*.

552.203-71 Restriction on Advertising
552.215-70 Examination of Records by GSA

(End of clause)

552.241-70 Availability of Funds for the Next Fiscal Year or Quarter (AUG 2010) (Deviation FAR 52.232-19)

Funds are not presently available for performance under this contract beyond **September 30, 2026.** The Government’s obligation for performance of this contract beyond that date is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise for performance under this contract beyond **September 30, 2026**, until funds are made available to the Contracting Officer for performance and until the Contractor receives notice of availability, to be confirmed in writing by the Contracting Officer.

(End of clause)

552.241-71 Disputes (Utility Contracts) (Aug 2010)

The requirements of the Disputes clause at FAR 52.233-1 are supplemented to provide that matters involving the interpretation of tariffed retail rates, tariff rate schedules, and tariffed terms provided under this contract are subject to the jurisdiction and regulation of the utility rate commission having jurisdiction.

(End of clause)

552.252-5 Authorized Deviations in Provisions (NOV 2021) (Deviation FAR 52.252-5)

*(1) Deviations to FAR provisions. T*his solicitation identifies any authorized deviation to a Federal

Acquisition Regulation (FAR) (48 CFR chapter 1) provision by—

• The addition of “(DEVIATION)” after the date of the FAR provision when an authorized deviation to a FAR provision is being used, and

• The addition of “(DEVIATION FAR (provision number))” after the date of the GSAR provision when a GSAR provision is being used in lieu of a FAR provision.

*(2) Deviations to GSAR provisions. T*his solicitation identifies any authorized deviation to a General Services Administration Acquisition Regulation (GSAR) (48 CFR chapter 5) provision by the addition of “(DEVIATION)” after the date of the provision.

*(3) “Substantially the same as” provisions. C*hanges in wording of provisions prescribed for use on a “substantially the same as” basis are not considered deviations.

(End of provision)

SECTION D: SUBMISSION REQUIREMENTS

D.1 EVIDENCE OF TECHNICAL ACCEPTABILITY

General: Offerors may request to be determined technically acceptable for multiple Local Distribution Utilities (LDUs). Technically acceptable Offerors may participate in the auction for that LDU. Offerors must complete Attachment 1, OFFEROR’S PROPOSAL CHECKLIST, clearly specifying in which LDU the Offeror wants to be determined technically acceptable. This will in no way require the Offeror to submit an offer during the auction for that utility, but Offerors who are not determined to be technically acceptable will not be allowed to participate in the auction for accounts in that utility. Offerors are required to submit the information below so that the Government may determine the technical acceptability of the offeror without requesting additional information.

General Responsibility: The evidence of technical qualifications required below is in addition to the general responsibility criteria set forth in FAR 9.104. The Government may conduct pre-award surveys in accordance with FAR 9.106 in order to obtain, from available sources, relevant information concerning the offeror's ability to satisfy the standards stated in FAR 9.106.

Pass/Fail Factors For All Utilities: Failure to meet any of the following factors may constitute a technically unacceptable offer for all utilities.

In order to be considered technically acceptable in ***any*** utility, each offeror shall:

1. Provide evidence that the Offeror (a) has the financial wherewithal to provide the services required under the contract throughout the term; (b) employs risk management measures related to providing retail electric supply; and (c) has developed plans to supply the energy required by this contract to the Delivery Point. Supply plans shall specifically address steps that the offeror will take to minimize risk to the Government in the event of a wholesale supplier default and any protections the Government may be afforded in such event. In addition, offerors shall either provide proof of a current rating of A or better with Moody's or Standards and Poor's or shall provide their most recently audited financial statements. If current audited financial statements are required, they must have been prepared no earlier than January 1, 2024. Such financial statements shall present the financial position, the results of operations, and cash flows in accordance with United States Generally Accepted Accounting Principles (GAAP). An auditor's opinion shall accompany the financial statements and such audit shall be conducted in accordance with auditing standards generally accepted in the United States of America. After review of the information provided, GSA may require a letter of credit or proof the offeror can obtain a letter of credit (performance bonds, etc.) which provides assurance that the offeror has sufficient financial credit to purchase the volumes of electricity they intend to propose on. **Note that failure by an offeror to provide the required documents may render their offer technically unacceptable.**

2. Provide a copy of the Offeror's current Dun & Bradstreet report. The printed date of the report shall be no earlier than February 1st, 2026.

3. Complete and provide Attachment 2: Contractor Information.

4. Complete and provide Attachment 4: Federal Contractor Veterans' Employment Report VETS-4212 in accordance with 52.222-37

5. Complete and provide Attachment 6: Offeror's Representations and Certifications - Commercial Products and Commercial Services (if not in SAM.gov)

6. Provide a Small Business Subcontracting Plan for all contracts expected to exceed $900,000 in accordance with FAR Clause 52.219-9 - Small Business Subcontracting Plan and 52.219-8, Utilization of Small Business Concerns. If an offeror has a subcontracting plan that has been approved by a Government Agency such as the Defense Logistics Agency (DLA) ,while the plan remains in effect,the offeror may resubmit that plan to meet this requirement. The subcontracting plan must be submitted within the offeror's technical proposal. Additional

information on subcontracting plans including the types of acceptable plans and requirements can be found in Attachment 5: Commercial and Individual Model Subcontracting Plans. Offeror acknowledges that even if the offeror's technical proposal is deemed technically acceptable, any exceptions or changes inconsistent with the terms and conditions of the solicitation can **constitute a technically unacceptable offer and the Offeror may not be allowed to participate in phase two – pricing**

Pass/Fail Factors For the PJM: Failure to meet any of the factors listed in Section D.1 EVIDENCE OF TECHNICAL ACCEPTABILITY and ATTACHMENT 14: TECHNICAL REQUIREMENTS SPECIFIC TO PJM (DISTRICT OF COLUMBIA, DELAWARE, PENNSYLVANIA, NEW JERSEY, MARYLAND, and OHIO) RTO may constitute a technically unacceptable offer for the PJM LDUs**.**

Pass/Fail Factors For the MISO: Failure to meet any of the factors listed in Section D.1 EVIDENCE OF TECHNICAL ACCEPTABILITY and ATTACHMENT 15 TECHNICAL REQUIREMENTS SPECIFIC TO Midcontinent Independent System Operator (MISO) may constitute a technically unacceptable offer for the MISO LDUs**.**

Pass/Fail Factors For the NYISO: Failure to meet any of the factors listed in Section D.1 EVIDENCE OF TECHNICAL ACCEPTABILITY and ATTACHMENT 16 TECHNICAL REQUIREMENTS SPECIFIC TO New York Independent System Operator (NYISO) may constitute a technically unacceptable offer for the NYISO LDUs.

D.2 PRICE PROPOSAL

General: The offeror shall provide a firm fixed price per kWh for the full period of performance as indicated in Exhibit 1. The offered prices shall remain constant for the full contract term for each pricing group. Attachment 3: Price Component Confirmation Tables, for each utility is included and incorporated into the terms and conditions of this solicitation and any resulting contract(s).

Pricing Groups: The Government's requirements will be broken down into pricing groups as indicated in the final Exhibit 1 files. The rate offered shall be the same for every account included in each pricing group.

Notes and Instructions to Offerors Regarding Pricing:

1. The quantities and figures shown in Exhibit 1 are estimated load requirements at the facility's meter and are based upon the best information available to GSA. The load information submitted is intended as an estimate of the magnitude and nature of the loads during a specified time period. Such estimates are being furnished for information purposes, and for computation of prices. Since it is impossible to determine the precise quantities that will be needed during the contract term, the Offeror whose offer is accepted shall be obligated to furnish electricity sufficient to meet each facility's full electric requirements during the term of this contract.

2. All costs to the facility up to the utilities system are to be billed in accordance with Attachment 3: Price Component Confirmation Tables, including (i) taxes specifically permitted as provided for

in the tailored addendum to FAR 52.212-4(k) and (ii) acceptable utility charges. Acceptable utility charges are only those imposed by the utility acting in its regulated utility capacity.

3. The Government and the accounts included in this solicitation may be exempt from state and local sales taxes. The Government is not exempt from New York or Pennsylvania Gross Receipts Tax (GRT). The Government will cooperate with the Contractor to complete any necessary tax-exempt forms.

4. **The Offeror agrees to hold the prices in its price proposal firm from the time prices are submitted on auction day until 1:30 p.m. EST on each auction day.** GSA will send a notice of award via email by 1:30 p.m. EST to the awarded offeror or offerors but may not provide a fully executed contract the same day. Offerors will be required to honor their prices once the notice of award is provided.

5. GSA will hold a pre-proposal call at 11:00 AM EST on January 28th, 2026 to provide offerors the opportunity to ask questions related to the solicitation, pricing products and terms and conditions. GSA will also hold a series of pre-proposal calls as indicated in Attachment 12: Pre-Proposal Call Schedule, to provide offerors the opportunity to ask questions related to the final Exhibit 1 files. The call in number for the January 28th, 2026 call is 1 (402) 751 0105 pin 546722965. Suppliers may also join the ZoomGov pre-proposal call through the following link https://gsa.zoomgov.com/j/1611142507?pwd=HUb0BGWhpWyktL1CHqaG6y5QywTBdk.1 Meeting ID: 161 114 2507 Passcode: 519446.

6. All questions regarding technical proposal submissions, terms of this solicitation and pricing products shall be submitted in writing to Mark2.West@gsa.gov, brenna.lanphear@gsa.gov, and romon.mccord@gsa.gov no later than 2:00 PM EST on February 4th, 2026. Additional questions regarding accounts, volumes, utility data, terms and other fields specific to the final Exhibit 1 files may be submitted in accordance with the dates listed Attachment 12: Pre-Proposal Call Schedule.

7. The Government will not accept any exceptions to this Solicitation which are inconsistent with the terms and requirements of this Solicitation. Any exceptions or changes inconsistent with the terms and conditions of the solicitation can **constitute a technically unacceptable offer and Offeror may not be allowed to participate in phase two – pricing.**

8. The GSA Energy Procurement Support Contractor (currently Enel X, Inc.) will post a signed Letter of Authorization (LOA) on their announcement site for all included utilities which Offerors may use to request utility data. Per 52.227-14(d)(2), any data obtained from a utility under a letter of authorization issued for this contract shall only be used for the purposes of preparing the offer or for performance of this contract and shall not be further disclosed without the prior written authorization of the Contracting Officer.

D.3 SUBMISSION OF PROPOSALS

Offerors shall submit one (1) original technical proposal with signatures on all documents as required. Evidence of technical acceptability shall be received no later than 3:00 p.m. EST on February 19th,

2026. **E-mail, do not mail, submissions of the Evidence of Technical Acceptability to** Mark2.West@gsa.gov, brenna.lanphear@gsa.gov, and romon.mccord@gsa.gov. Only email submissions will be accepted and the e-mail shall be marked as RFP **47PA0826R0001**. Note that GSA will not accept submissions via file servers or other means where GSA is required to download part or all of the technical proposal submission from the offeror's site or a third-party site.

Price Proposal: All pricing received as a result of this solicitation shall be submitted on auction day using an internet based auction transaction platform administered by the Energy Procurement Support Contractor designated by GSA (currently Enel X, Inc.). In accordance with the rules and mechanics of Enel X's auction platform, Offerors will be allowed to offer and reoffer pricing until the close of the auction time for each pricing group and accompanying contract term. Auction instructions are detailed on the EnelX website: https://www.enelx.com/n-a/en. The pricing format and the final auction schedules will be posted to the EnelX website.

Auction Schedule: The final auction schedules for this solicitation will be posted at:

https://www.exchange.enelx.com/WebPortal/AnnouncementView.aspx?id=16618

Offeror's Proposal Checklist: Offerors shall complete Attachment 1: Offeror's Proposal Checklist Offers that do not contain the information required in the checklist may not be considered technically acceptable.

D.4 ON-RAMPING

Offerors shall submit one (1) original technical proposal in accordance with Section D; however, Offerors who previously submitted a technical proposal and were found technically acceptable for at least one utility and want to be considered technically acceptable in additional utilities, may request to be determined technically acceptable in those additional utilities by submitting all required documents pursuant to Section D at least ten (10) business days prior to the planned auction date as specified in the final auction schedules. Only Offerors who are determined to be technically acceptable for the applicable utility will be invited to provide pricing on the auction day for that utility.

D.5 CONFIRMATION OF TECHNICAL ACCEPTABILITY

The Government reserves the right to request updated information listed in Section D and re-evaluate an Offeror's technical acceptability based on that information. If, after this evaluation, an Offeror is determined to no longer be technically acceptable, it will be notified in writing by the Contracting Officer and not allowed to provide pricing on auction day. Offerors shall notify the CO in writing as soon as is reasonably practicable if any of the terms of their technical proposal change.

SECTION E. EVALUATION FACTORS FOR AWARD

E.1 EVALUATION

This solicitation will be evaluated in two phases. The first phase is technical acceptability. During phase one, the Government will evaluate technical acceptability in each of the utilities indicated in Attachment 1: Offeror's Proposal Checklist, in accordance with Section D. Technically acceptable offerors will be notified in writing by the CO at least fourteen (14) days prior to the auction dates listed in the final auction schedules. Only technically acceptable offerers will be invited to submit prices during phase two, the auction as specified in the final auction schedules. Once an Offeror is determined to be technically acceptable, it will typically remain technically acceptable for as long as the solicitation remains open, except as provided for in Section D.5. Offerors are not required to submit multiple technical proposals unless it requests to be considered for additional utilities in accordance with Section D.5.

E.2 BASIS FOR AWARD

The Government contemplates multiple awards against this solicitation. GSA intends to make award(s) to the lowest priced, technically acceptable offeror(s).

The Government may, at its discretion and for any reason, choose not to make an award after receiving pricing or request that offerors re-price the solicitation's retail electricity requirements at a later date.

SECTION F. LIST OF ATTACHMENTS AND EXHIBITS

ATTACHMENT 1: OFFEROR'S PROPOSAL CHECKLIST
ATTACHMENT 2: CONTRACTOR INFORMATION
ATTACHMENT 3: PRICE COMPONENT CONFIRMATION TABLES
ATTACHMENT 4: SAMPLE FEDERAL CONTRACTOR VETERANS' EMPLOYMENT REPORT VETS-4212 FORM
ATTACHMENT 5: COMMERCIAL AND INDIVIDUAL MODEL SUBCONTRACTING PLANS
ATTACHMENT 6: 52-212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

ATTACHMENT 7: VERIFICATION FROM RENEWABLE POWER / RENEWABLE ENERGY SUPPLIER
ATTACHMENT 8: RENEWABLE POWER / RENEWABLE ENERGY GENERATOR REGISTRATION FORM
ATTACHMENT 9: RENEWABLE POWER / RENEWABLE ENERGY VERIFICATION
ATTACHMENT 10: RENEWABLE POWER / RENEWABLE ENERGY CERTIFICATE NOTIFICATION
ATTACHMENT 11: RENEWABLE POWER / RENEWABLE ENERGY ELECTRICITY CALCULATIONS
ATTACHMENT 12: PRE-PROPOSAL CALL SCHEDULE
ATTACHMENT 13: PRELIMINARY EXHIBIT 1

ATTACHMENT 14: TECHNICAL REQUIREMENTS SPECIFIC TO PJM (DISTRICT OF COLUMBIA, DELAWARE, PENNSYLVANIA, NEW JERSEY, MARYLAND, OHIO) RTO
ATTACHMENT 15: TECHNICAL REQUIREMENTS SPECIFIC TO MIDCONTINENT INDEPENDENT SYSTEM OPERATOR (MISO)
ATTACHMENT 16: TECHNICAL REQUIREMENTS SPECIFIC TO NEW YORK INDEPENDENT SYSTEM OPERATOR (NYISO)
ATTACHMENT 17: ANNUAL USAGE ATTESTATION REPORT

ATTACHMENT 1: OFFEROR'S PROPOSAL CHECKLIST

NOTE; THIS CHECKLIST MUST BE PROVIDED AS THE FIRST PAGE OF ALL TECHNICAL PROPOSAL RESPONSE PACKAGES FROM OFFERORS.

Per Section D.3, proposals must include the following in the order listed below. Confirm each of the below items has been included in offeror's technical proposal response package to the Government in the order specified below by including a check in the box next to each item:

- ☐ Completed Technical Proposal for each balancing authority you want to be considered for award:
  - ☐ PJM
  - ☐ MISO
  - ☐ NYISO
- ☐ Signed SF1449
- ☐ Signed SF30 for each amendment, if applicable
- ☐ Completed Attachment 1: Offeror's Proposal Checklist
- ☐ Completed Attachment 2: Contractor Information
- ☐ Completed Attachment 6: Representations and Certifications (if not in SAM.gov)
- ☐ Response to Evidence of Technical Acceptability (See Section D.1 for full description of information required)
- ☐ Depending upon the total dollar value of the resultant awarded contract(s) and the size status of the offeror, the offeror may be required to submit a subcontracting plan for small businesses in accordance with FAR Clause 52.219-9 - Small, Small Disadvantaged and Women-Owned Small Business Subcontracting Plan. If an offeror has a current subcontracting plan that has been approved by the Defense Logistics Agency (DLA) or has a current commercial plan that has been approved by GSA, offeror may resubmit that plan to meet this requirement. The subcontracting plan shall be submitted within the offeror's technical proposal. Additional information on subcontracting plans including the types of acceptable plans and requirements can be found in Attachment 15.
- ☐ By signing and submitting the Signed SF1449, Offeror agrees with all terms and conditions of this solicitation.
- ☐ GSA requires Offerors to confirm if they will provide an online billing platform that GSA and the government agencies that purchase electric supply through this contract can access and download copies of their monthly invoices. Note, this response is for informational purposes only and is not an evaluation factor.
  - ☐ Yes
  - ☐ No

ATTACHMENT 2: CONTRACTOR INFORMATION

1. COMPANY:

COMPANY NAME:
ADDRESS:

Telephone Number:
Fax Number:
E-Mail Address:

Unique Entity ID (SAM)
Tax Identification Number (TIN):
CAGE CODE:

2. POINT OF CONTACT INFORMATION:

A. For CONTRACT ADMINISTRATION:

Name:
Address:

E-Mail Address:
Phone:
FAX:

B. For REMITTANCE

Name:
Address:

E-Mail Address:
Phone:
FAX:

ATTACHMENT 4

FEDERAL CONTRACTOR VETERANS' EMPLOYMENT REPORT VETS-4212

OMB NO: 1293-0005

Expires: 06/30/2027

Persons are not required to respond to this collection of information unless it displays a valid OMB number. It is mandatory for a covered Federal contractor respond to this information collection. *See* 38 U.S.C. § 4212(d) and "Who Must File" section of instructions.

RETURN COMPLETED REPORT TO:
VETS-4212 Submission
Veterans' Employment and Training Service Center
Department of Labor National Contact Center (DOL-NCC)
3110 Fairview Park Drive, Suite 800
Falls Church, VA 22042

ATTN: Human Resource/EEO Department

TYPE OF REPORTING ORGANIZATION (Check one or both, as applicable)	**TYPE OF FORM** (Check only one)
☐ Prime Contractor ☐ Subcontractor	☐ Single Establishment ☐ Multiple Establishment-Headquarters ☐ Multiple Establishment-Hiring Location ☐ Multiple Establishment-State Consolidated (specify number of locations) (MSC)

COMPANY IDENTIFICATION INFORMATION (Omit items preprinted above-ADD Company Contact Information Below)

COMPANY No:	*TWELVE MONTH PERIOD ENDING* _ _ / _ _ / 2023 (M M D D Y Y Y Y)		
NAME OF PARENT COMPANY:	*ADDRESS (NUMBER AND STREET):*		
CITY:	*COUNTY:*	*STATE:*	*ZIP CODE:*
NAME OF COMPANY CONTACT:	*TELEPHONE FOR CONTACT:*	*EMAIL:*	

NAME OF HIRING LOCATION:	*ADDRESS (NUMBER AND STREET):*		
CITY:	*COUNTY:*	*STATE:*	*ZIP CODE:*

NAICS: _ _ _ _ _ _ **DUNS:** _ _ – _ _ _ – _ _ _ _ ***EMPLOYER ID (IRS TAX No.)*** _ _ – _ _ _ _ _ _ _

INFORMATION ON EMPLOYEES

REPORT THE TOTAL NUMBER OF EMPLOYEES AND NEW HIRES WHO ARE PROTECTED VETERANS, AS DEFINED IN THE INSTRUCTIONS. DATA ON NUMBER OF EMPLOYEES ARE TO BE ENTERED IN COLUMN A AND B, LINES 1.1 THROUGH 9. DATA FOR NEW HIRES ARE ENTERED IN COLUMNS C AND D. LINE 10 IS TOTAL OF EACH COLUMN. ENTRIES IN COLUMNS C AND D, LINES 1.1 THROUGH 9 (GRAY SHADED AREAS) ARE OPTIONAL. ENTER THE MAXIMUM AND MINIMUM NUMBER OF EMPLOYEES.

JOB CATEGORIES	NUMBER OF EMPLOYEES		NEW HIRES (PREVIOUS 12 MONTHS)	
	PROTECTED VETERANS (A)	TOTAL EMPLOYEES (B)	PROTECTED VETERANS (C)	TOTAL NEW HIRES (D)
EXECUTIVE/SENIOR LEVEL OFFICIALS AND MANAGERS 1.1				
FIRST/MID LEVEL OFFICIALS AND MANAGERS 1.2				
PROFESSIONALS 2				
TECHNICIANS 3				
SALES WORKERS 4				
ADMINISTRATIVE SUPPORT WORKERS 5				
CRAFT WORKERS 6				
OPERATIVES 7				
LABORERS/HELPERS 8				
SERVICE WORKERS 9				
TOTAL EMPLOYEES 10				

Report the total maximum and minimum number of permanent employees during the period covered by this report.

Maximum Number	Minimum Number

Federal Contractor Veterans' Employment Report (VETS-4212)

WHO MUST FILE: This VETS-4212 Report is to be completed by all nonexempt Federal contractors and subcontractors with a contract or subcontract in the amount of $150,000 or more with any department or agency of the United States for the procurement of personal property or non-personal services. Services include but are not limited to the following services: utility, construction, transportation, research, insurance, and fund depository, irrespective of whether the government is the purchaser or seller. Entering into a covered Federal contract or subcontract during a given calendar year establishes the requirement to file a VETS-4212 Report during the following calendar year.

WHEN TO FILE: This annual report must be filed no later than September 30.

LEGAL BASIS FOR REPORTING REQUIREMENTS: Title 38, United States Code, Section 4212(d) mandates that Federal contractors and subcontractors subject to the statute's affirmative action provisions in 38 U.S.C. 4212(a) report, at least annually, the number of employees in their workforces by job category and hiring location, and the number of such employees, by job category and hiring location, who are qualified protected veterans. In addition, Federal contractors and subcontractors must report the total number of new hires during the period covered by the report and the number of such new hires who are qualified protected veterans. Further, Federal contractors and subcontractors must report on the maximum and minimum number of employees during the period covered by the report. The Department of Labor's Veterans' Employment and Training Service (VETS) has promulgated regulations found at 41 CFR part 61-300 to implement the reporting requirements of 38 U.S.C. 4212(d). The regulations require contractors and subcontractors to file the VETS-4212 Report to comply with the requirements of 38 U.S.C. 4212(d). The regulations in 41 CFR part 61-300 can be found at http://www.dol.gov/general/cfr/title_41.

HOW TO FILE THE VETS-4212 REPORT: The preferred method for filing VETS-4212 Reports is electronically through the VETS web-based filing system. Instructions for electronically filing the VETS-4212 Report are found on the VETS website at http://www.dol.gov/agencies/vets/programs/vets4212. Alternative filing methods are described below in these instructions.

Single Establishment Employers: Employers doing business at one hiring location may complete and submit a single VETS-4212 Report using the web-based filing system, or submit a single paper version of the VETS-4212 Report, as described below under Alternative Filing Methods.

Multi-Establishment Employers: Employers doing business at more than one hiring location, must file: (A) a VETS-4212 Report covering the principal or headquarters office; (B) a separate VETS-4212 Report for each hiring location employing 50 or more persons; and (C) EITHER, (i) a separate VETS-4212 Report for each hiring location employing fewer than 50 persons, OR (ii) consolidated reports that cover hiring locations within one State that have fewer than 50 employees. Multi-establishment employers doing business at more than 10 locations must submit their VETS-4212 Reports in the form of an electronic data file that complies with current Department of Labor specifications for the format of these records, and any other specifications established by the Department for the applicable reporting year. Multi-establishment employers with fewer than 10 hiring locations are strongly encouraged to submit their VETS-4212 Reports in the form of an electronic data file, but are not required to do so. In these cases, state consolidated reports count as one location each. VETS-4212 Reports in the form of electronic data files may be submitted through the web-based filing system. Electronic data files also may be transmitted electronically as an e-mail attachment (if they do not exceed the size stated in the specifications), or submitted on compact discs or other electronic storage media.

ALTERNATIVE FILING METHODS: The VETS-4212 Report may also be filed in paper format. Reporting organizations may download a paper version of the VETS-4212 Report from the VETS website at **http://www.dol.gov/agencies/vets/programs/vets4212** or send a written request for the paper version of the VETS-4212 Report to: Office of the Assistant Secretary for Veterans' Employment and Training, U.S. Department of Labor, 200 Constitution Avenue, NW, Room S-1325, Washington, DC 20210, Attn: VETS-4212 Report Form Request.

WHERE TO FILE: VETS-4212 Reports in paper format or electronic data files on compact discs or other electronic storage media may be delivered by U.S. mail or courier delivery service to: Veterans' Employment and Training Service Center, Department of Labor National Contact Center (DOL-NCC), 3110 Fairview Park Drive, Suite 800 Falls Church, VA 22042. Paper copies of the VETS-4212 Reports and electronic data files (if they do not exceed the size stated in the specifications) also may be sent as e-mail attachments to: **VETS4212-customersupport@dol.gov**

HOW TO PREPARE THE VETS-4212 REPORT: All fields and answers to questions in all areas of the VETS-4212 Report are mandatory unless otherwise specified below. If the multi-establishment employer has hiring locations employing fewer than 50 persons, the employer may file separate reports for each hiring location or consolidated reports that cover multiple hiring locations within one state.

Type of Reporting Organization: Indicate the type of contractual relationship (prime contractor or subcontractor) that the organization has with the Federal Government. If the organization serves as both a prime contractor and a subcontractor on various federal contracts, check both boxes. If a reporting organization submits only one VETS-4212 Report for a single location, check the Single Establishment box. If the reporting organization submits more than one VETS-4212 Report, one report should be checked as Multiple Establishment-Headquarters. The remaining VETS-4212 Reports should be checked as either Multiple Establishment-Hiring Location or Multiple Establishment-State Consolidated. For state consolidated reports, the number of hiring locations included in that report should be entered in the space provided. For each report, only one box should be checked within this block.

Company Identification Information: . Please note: If a Federal Contractor Report has been filed in the past, you need to utilize the company number assigned in previously submitted reports. If a company number is not available please leave the field blank. If there are any questions regarding a Company Number, please call the VETS-4212 Customer Support Center at (866) 237-0275 or e-mail VETS4212-customersupport@dol.gov.

Twelve Month Period Ending: Enter the end date for the twelve month reporting period used as the basis for filing the VETS-4212 Report. To determine this period, select a date in the current year between July 1 and August 31 that represents the end of a payroll period. The selected date will be the basis for reporting the Number of Employees, as described below. The twelve-month period preceding that date is your twelve-month covered period. This period is the basis for reporting New Hires, as described below. Any Federal contractor or subcontractor that has written approval from the Equal Employment Opportunity Commission to use December 31 as the ending date for the EEO-1 Report may also use that date as the ending date for the payroll period selected for the VETS-4212 Report.

Name and Address for Single Establishment Employers: Complete the identifying information under the Parent Company name and address section.

Name and Address for Multi-Establishment Employers: For parent company headquarters location, complete the name and address for the parent company headquarters and leave blank the name and address of the Hiring Location. For hiring locations of a parent company, complete the address for the Parent Company location, complete the name and address for the Hiring Location.

<u>NAICS Code, DUNS Number, and Employer ID Number</u>: Single Establishment and Multi-Establishment Employers must complete the North American Industry Classification System (NAICS) Code, Dun and Bradstreet I.D. Number (DUNS), and Employer Identification Number (EIN) as described below:

- **<u>NAICS Code</u>:** Enter the six (6) digit NAICS Code applicable to the hiring location for which the report is filed. If there is not a separate NAICS Code for the hiring location, enter the NAICS Code for the Parent Company.
- **<u>DUNS Number</u>:** If there is a specific Dun and Bradstreet Identification applicable to the hiring location for which the report is filed, please enter the nine (9) digit in the space provided. If the hiring location does not have a DUNS Number, enter the DUNS number for the Parent Company. If an appropriate DUNS Number cannot be identified, leave this field blank.
- **<u>Employer I.D. Number (EIN)</u>:** Enter the nine (9) digit number assigned by the I.R.S. to the contractor. If there is a specific EIN applicable to the hiring location for which the report is filed, enter that EIN. Otherwise, enter the EIN for the Parent Company.

<u>Number of Employees</u>: Report the total number of employees who are protected veterans for each of the 10 occupational categories (Lines 1.1 through 9) in column A. Report the total number of employees, including protected veterans, for each of the 10 occupational categories (Lines 1.1 through 9) in column B. Blank spaces will be considered zeros.

<u>New Hires (Previous 12 Months)</u>: Report the total number of employees who were hired and included in the payroll for the first time during the 12-month period preceding the ending date of the selected payroll period. Report the total number of new hires who are protected veterans in column C. Report the total number of new hires, including protected veterans, in column D. Providing new hire data for each of the occupational categories (columns C and D, lines 1.1 through 9) is optional. Blank spaces will be considered zeros.

<u>Maximum/Minimum Employees</u>: Report the maximum and minimum number of employees on board during the twelve-month period covered by this report, as indicated by 41 CFR 61-300.10(a)(3).

DEFINITIONS:

'<u>Employee</u>**' –** means any individual on the payroll of an employer who is an employee for purposes of the employer's withholding of Social Security taxes except insurance sales agents who are considered to be employees for such purposes solely because of the provisions of 26 U.S.C. 3121 (d)(3)(B) (the Internal Revenue Code). Part-time employees and leased employees are included in the definition of 'employee.' The definition does not include persons hired on a casual basis for a specific job (e.g., persons at a construction site whose employment relationship is expected to terminate with the end of the employee's work at the site); persons employed temporarily in an industry other than construction who are hired through a hiring hall or some other referral arrangement; or persons on the payroll of an employment agency who are referred by such agency for work to be performed on the premises of another employer under that employer's direction and control, as provided in 41 CFR 61-300.2(b)(5).

'<u>Hiring location</u>' – means an establishment as defined at 41 CFR 61-300.2(b)(6).

'<u>Job Categories</u>' – means any of the following: Officials and Managers (Executive/Senior Level Officials and Managers and First/Mid-Level Officials and Managers), Professionals, Technicians, Sales Workers, Administrative Support Workers, Craft Workers, Operatives, Laborers and Helpers, and Service Workers and are defined in 41 CFR 61-300.2(b)(7).

'<u>Protected Veteran</u>' – means a veteran who is protected under the nondiscrimination and affirmative action provisions of the Vietnam Veterans' Readjustment Assistance Act, 38 U.S.C. 4212; specifically a veteran who may be classified as an active duty wartime or campaign badge veteran, disabled veteran, Armed Forces service medal veteran, or recently separated veteran,

- ***'Active duty wartime or campaign badge Veteran'*** – means a veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized under the laws administered by the Department of Defense.
- ***'Armed Forces Service Medal Veteran'*** – means any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985 (61 FR 1209, 3 CFR, 1996 Comp., p. 159).
- ***'Disabled Veteran'*** – means (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.
- ***'Recently Separated Veteran'*** – means a veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military, ground, naval or air service.

RECORD KEEPING: Employers must keep a copy of the completed annual VETS-4212 Report(s) submitted to DOL for a period of three years.

Public Burden Statement: Public reporting burden for this collection is estimated to average 20 minutes per location to make an electronic filing and 40 minutes per location to make a paper filing, including the time for reviewing instructions, searching existing data source, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing the burden to the Department of Labor, Veterans' Employment and Training Service, Office of Information Management, Room N-1316, 200 Constitution Avenue, NW, Washington D.C. 20210 or electronically transmitted to VETS4212-customersupport@dol.gov All completed VETS-4212 Reports should be sent to the address indicated on the front of the form. See actual VETS-4212 Report for additional disclosures.

MODEL COMMERCIAL SUBCONTRACTING PLAN INSTRUCTIONAL REMINDERS

Remove these instructional pages before submitting your completed subcontracting plan to the Contracting Officer

Use the Commercial Subcontracting Plan Template when:

- The company determines this is the best type of plan to meet its purchasing model.
- The supplies or services provided to the federal government meet the definition of "commercial" in FAR Part 2 (GSA Deviation RFO-2025-2). (A commercial subcontracting plan is the preferred type of subcontracting plan for contractors furnishing commercial products and commercial services.)

NOTE: The Model Commercial Subcontracting Plan template is a tool contractors may choose to use when preparing their commercial subcontracting plans. It is not mandatory for contractors to use this tool, they need only to ensure they have included all statutory elements.

The Model Commercial Subcontracting plan:

- **Is NOT a fill-in-the-blank form**
- **Does not replace the FAR requirements listed in clause 52.219-9 Small Business Subcontracting Plan (NOV 2025)**
- **Reflects objectives GSA encourages contractors to adopt**

A commercial subcontracting plan:

- Relates to the offeror's planned subcontracting generally, for both commercial and Government business, rather than solely to the Government contract..
- Is the **preferred** type of subcontracting plan for Contractors furnishing commercial items and services.
- Covers only the **company's fiscal year** (12 month period - i.e., only one commercial plan per Contractor annually).
- Applies to the purchasing to support the entire production of commercial items sold by the entire company or is limited to a portion thereof (e.g. division, plant, or product line). Please indicate such a statement in the commercial plan, whether it applies company-wide or is a limited plan.
    - Must include indirect costs (i.e. general and routine commercial purchases)

- Note: If the commercial plan encompasses more than one company within the corporation, identify in the plan the companies covered and include the Unique Entity Identifier [UEI] for each.

- Remains in effect during the Contractor's fiscal year for all Government contracts in effect during that period. Once a Contractor's commercial plan has been approved, the Government shall not require another subcontracting plan from the same Contractor while the plan remains in effect, as long as the product or service being provided continues to meet the definition of a commercial item.

Before preparing the subcontracting plan:

- **Review the requirements set forth in the FAR, particularly:**
  - FAR 19.109(a)(1) (GSA Class Deviation RFO-2025-19)
  - FAR 19.206-2 Elements of the subcontracting plan (GSA Class Deviation RFO-2025-19)
  - FAR 19.302 Small business subcontracting plans (GSA Class Deviation RFO-2025-19)
  - FAR clause 52.219-8, Utilization of Small Business Concerns[1] (NOV 2025)
  - FAR clause 52.219-9, Small Business Subcontracting Plan (NOV 2025)
  - FAR clause 52.219-16, Liquidated Damages - Subcontracting Plan (NOV 2025)

- **Understand the statutory requirements in 15 USC 637(d):**

  - Any contractor receiving a contract for more than the simplified acquisition threshold **must agree** in the contract that Small Business (SB) (including Alaska Native Corporations [ANCs] and Indian tribes), veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), HUBZone small business, small disadvantaged business (SDB) , and women-owned small business (WOSB) concerns will have the maximum practicable opportunity **to participate in contract performance** consistent with its efficient performance.

  - Timely pay amounts due pursuant to the terms of their subcontracts with SBs, VOSBs, SDVOSBs, HUBZone, SDBs (including ANCs and Indian tribes), and WOSB concerns.

  - **Failure to submit and negotiate the subcontracting plan shall make the Offeror ineligible for award of the contract.**

[1] Note the requirement in this clause indicating you agree to implement the U.S. policy to maximize opportunities for SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone small businesses to participate as subcontractors to the **"fullest extent"**.

- **Understand the representation requirements to be eligible as subcontractor under a subcontracting plan, as listed in FAR 19.302-2(a)(1) (GSA Class Deviation RFO-2025-19).**

- **Recognize that the negotiated subcontracting plan will become a material part of the contract upon award[2] subject to monitoring by the federal government after award.** "Material" means it is just as important as the specifications, delivery schedule and price of the prime contract and is subject to the assessment of liquidated damages for failing to make a "good faith effort."[3] Monitoring will be done by examining subcontracting plan reports. Small business subcontracting performance will be considered by the government as part of the annual performance evaluations.

- **Understand the reporting requirements[4] after award (FAR 52.219-9(l)). Submit required reports in the government-wide Electronic Subcontract Reporting System (eSRS):**

    - One (1) Summary Subcontract Report (SSR) due no later than October 30th each year

Note: for more information, check out the SBA website where you can find the subcontracting regulations, compliance reviews and points of contact: [SBA Prime-Subcontracting]

Prepare the commercial subcontracting plan:

- Determine what will be subcontracted (supplies and services) throughout the **company's fiscal year** (12 month period).

- Identify the size and socio-economic categories of your suppliers, especially SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone small businesses. Best practice: if the size status of a supplier is unknown, check with the supplier to see if they are eligible as small business subcontractors for the NAICS applying to the subcontract. If small, do they also meet the definition and representation requirements of one or more of the socio-economic categories: SDB, WOSB, VOSB, SDVOSB or HUBZone?

- **Market research – Market research – Market Research!** Find new SB, SDB, WOSB, VOSB, SDVOSB and HUBZone suppliers who can meet the needs of the contract. If this is a follow-on or similar contract, does market research reveal

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[2] FAR 19.206-3(e)(5)

[3] "Good faith effort" is defined in the Small Business Administration regulations at 13 CFR 125(d)(3).

[4] Submit the reports pursuant to the due dates provided by the contracting officer which are either as prescribed in FAR 52.219-9 or pursuant to the SBA due dates listed in 13 CFR 125.3(d).

greater opportunities for all types of small business than found in the past? Check the Small Business Search: **SBS Website**

- Calculate small business subcontracting goals, ensuring estimated dollars are applied against all socio-economic categories represented by the small business (e.g., apply the same amount of dollars across multiple designations). Goals must reflect good faith efforts and realistic stretch goals. Once the determination is made on what will be subcontracted, adapt the Model Plan to fit your subcontracting situation. Ensure the subcontracting plan reflects best faith efforts and realistic **stretch** goals. Put thought into maximum practicable opportunities that might be possible and achievable for all socio-economic categories as well as small business throughout the life of the contract.

- Ensure the narrative of the subcontracting plan supports the proposed goals:

  - For example, does the description of what will be subcontracted match the goals proposed?
  - Does supporting information from similar contracts or past contracts support the proposed goals?

- To submit a commercial plan:
  - Complete Section I. *Identification Data* in the Model Template List the annual goals (or spend) for each socio-economic category listed in the commercial plan format provided under Section II, *Goals.*

  - Complete Sections III through XIV, ensuring a company official signs the plan under XV.

  - Submit the commercial plan to either:
    - the first Contracting Officer (of any agency) awarding a contract subject to the plan during the Contractor's fiscal year; or,
    - if the Contractor has ongoing contracts with commercial plans, to the Contracting Officer responsible for the contract with the latest completion date.

How to increase small business participation?

- **Market research – Market research – Market research!**
- **Resources to find small businesses:**
  - **SBA Commercial Market Representative**: **SBA CMRs**
  - **APEX Accelerators: APEX Accelerators (formerly known as Procurement Technical Assistance Centers: PTAC website)**
  - **SBA's Subnet** (helps prime contractors find small business subcontractors): **SBA Subnet website**
  - **Trade and professional organizations and conferences**
  - **Department of Commerce Minority Business Development Agencies: MBDA website**

        - **State, county, city minority business offices**
        - **Small, minority, women-owned, veteran business organizations**
        - **Local chambers of commerce: Chambers of Commerce website**
        - **Department of Veterans Affairs (VOSBs and SDVOSBs)**
        - **Small Business Search: SBS website** (formerly known as Dynamic Small Business Search)
- **See if current suppliers meet the size status for the NAICS code that best describes the subcontract and the socio-economic definitions in FAR part 2 (GSA Class Deviation RFO-2025-2) and representation requirements listed in FAR 19.302-2(a)(1) (GSA Class Deviation RFO-2025-19).**
    - **Eligibility as a subcontractor**: Small Businesses and Small Disadvantaged Businesses
        - represents itself as a small business by size stats for NAICS code that best describes the *subcontract* and the socio-economic definitions in FAR Part 2 (GSA Class Deviation RFO-2025-2)
        - Prime contractor cannot require subcontractor to register in System for Award Management (SAM), and may take subcontractor on self-attestation they meet the size standard
    - **Eligibility as a subcontractor:** Hubzone, WOSB, SDVOSB, VOSB
        - MUST be certified by SBA
        - Check certification at the Small Business Search
    - Again, **a company cannot be required to be registered in SAM** by a prime contractor. What's the difference between SBS and SAM?
        - SAM
            - Official registration database
            - Every company that wants to do business with government as a PRIME contractor MUST register here
            - Shows company's self-certification of small and socioeconomic small business
            - Includes NAICS codes, Key contact information

        - SBS
            - Database for verifying small business details including SBA certifications such as: 8(a), HUBZone, WOSB/EDWOSB and SDVOSB/VOSB
            - In addition to NAICS and Key contact info, it Also shows company capabilities narratives.

- **Break out elements of large contracts into smaller contracts suitable for small business participation.**

- **Perform the required functions under FAR 52.219-9(e) (NOV 2025):**
    - Arrange solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZones.

- Where the Contractor's lists of potential SBs, SDBs, WOSBs, VOSBs, SDVOSBs, and HUBZone small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.
- Adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all "make-or-buy" decisions.
- Counsel and discuss subcontracting opportunities with representatives of SBs, SDBs, VOSBs, SDVOSBs, WOSBs and HUBZone small businesses
- Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern in accordance with 52.219-8(e) (NOV 2025).
- Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.
- For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2) on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.
- Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

How do I develop subcontracting goals?

Note: The following sample goals & tips are offered to assist you with calculating the subcontracting plan goals to be listed in the commercial subcontracting plan:

- Decide what your company can provide internally, then determine what is left to outsource.

- Estimate total subcontracting dollars (“outsourcing”, “purchases” or “spend”) planned to both small and “other than small” business[5] (OTSB) concerns for each period of the contract (base period and each option period):

- Separately identify the dollars that will be subcontracted to both large/OTSB and to small businesses, which when added together make up the total dollars subcontracted to all concerns and 100%.

- For the small businesses, identify if your supplier meets representation requirements for one or more of the small business socio-economic categories SDB; WOSB; VOSB; SDVOSB and HUBZone. Note: small businesses can meet more than one socio-economic category.

- Apply the subcontracted dollars towards all small business socio-economic categories applicable to your suppliers. For example, a $30,000 subcontract awarded to a woman-owned, HUBZone, service-disabled veteran owned small business:

    - apply $30,000 against WOSB
    - apply $30,000 against HUBZone
    - apply $30,000 against SDVOSB
    - apply $30,000 against VOSB (since a SDVOSB is a VOSB)
    - apply $30,000 against small business since WOSB, HUBZone and SDVOSB are socio-economic small business subcategories.

Note: This is not double/triple counting, but ensures credit is given to all socio-economic categories represented by the small business

- The small business dollar amount must include all small business socio-economic subcategories; i.e., VOSB, SDVOSB, HUBZone, SDB, WOSB, (plus any "other small" businesses that do not fall within one of these specified subgroups). Note: include Alaskan Native Corporations (ANCs) and Indian tribes are included in both the SDB and total small business amounts.

- Once the dollars have been assigned to each socio-economic category, calculate the percentage for each category separately against the “Total dollars to be subcontracted.” Percent goals for each of these small business socio-economic categories must be expressed as a percentage of the TOTAL subcontracting dollars to all concerns (both OTSB and small)[6]

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[5] The term “other than small business is used to indicate all other certifications that are not small. Examples include non-profits, universities and educational institutions, utilities, state and local governments.

[6] A Contracting Officer **may** also require the goals to be calculated as a percentage of total **contract** dollars, in addition to the goals required as a percentage of subcontracted dollars. Usually this is

*** Caution: Only the OTSB total plus the small business total should equal the total dollars to be subcontracted in both dollars and percent. See calculation "notes" within Section II of this template for further assistance.**

Do NOT add together the small business socio-economic subcategories to reach the total small business figure, as the same dollars should already be included in the total for small business.

Who reviews subcontracting plans? FAR subpart 19.206-3 (GSA Class Deviation RFO-2025-19) indicates the contracting officer is responsible for reviewing the subcontracting plan for adequacy, ensuring it includes the required information, goals, and assurances. Further they:

- Negotiate an acceptable plan with the contractor
- Consider recommendations by the agency small business technical advisor (SBTA) as well as the Small Business Administration Procurement Center Representative (SBA PCR). These are the technical experts when it comes to small business and are required to review the plans, per the FAR.
- Consider the contractor's past performance in meeting small business subcontracting goals on past or similar contracts as a part of determining if the offeror is responsible.

How does a contracting officer review a subcontracting plan?

- Do the goals proposed demonstrate "**maximum practicable opportunity"** for SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone to participate in the performance of the contract" as required by 15 USC 637(d)?
- Does the narrative support the goals proposed? Think of the small business goals as the thesis statement and ensure the rest of the plan supports how the goals will be achieved throughout the life of the contract.
- Is the plan complete? Are all requirements for a plan as listed in FAR clause 52.219-9 (NOV 2025) addressed? The Model Plan lists all of the requirements.
- Like any goal, does the goals proposed build on past achievement?
- Does the plan demonstrate how your company will keep its market research fresh to find qualified SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone?
- How do the estimated goal percentages compare with the Agency's subcontracting goals?
    - Agency goals are provided as information only. Contractors (and COs) should avoid using agency goals as the objective in negotiating small business subcontracting plans which can result in establishing "minimums" for small business instead of creating "maximum practicable opportunities", as required by the Small Business Act.

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requested when GSA is acquiring products/services for another agency such as the Department of Defense.

- Are there any “0” proposed? Provide an explanation as zero is not considered a “positive” goal which the FAR requires. Can you find some dollars to give to the small business entity, maybe allocated from the indirect cost pool?

What happens after the plan is approved?

Once approved by a government contracting officer, the contractor may use the commercial plan for any federal government contract during the 12 month period covered by the plan.

DON’T FORGET TO:

- **Submit a new commercial plan, 30 working days before the end of the Contractor’s fiscal year (i.e., plan expiration date) to the Contracting Officer responsible for the uncompleted Government contract with the latest completion date.**
- **When the new commercial plan is approved each year, provide a copy of the approved plan to each Contracting Officer responsible for ongoing contract(s) subject to the plan.**
- After award, submit the required annual Summary Subcontracting Report (SSR) in the Electronic Subcontract Reporting System (eSRS):
    - Due no later than **November 14th** each year. **Failure to submit the report on time may indicate a lack of “good faith effort”, putting your company at risk for the assessment of liquidated damages.**
    - Be sure to select “Commercial” as the type of subcontracting plan
    - While the commercial plan covers your company’s fiscal year, the SSR covers all subcontracting done during the government’s fiscal year (October 1 through September 30)
    - List the email address of the contracting officer who approved the commercial plan on behalf of all federal agencies and the contracting officers when other federal agencies’ contracts are covered by the plan
    - Include indirect costs
    - Explain in the “Remarks” section any goal shortfalls or “0” dollars reported and the corrective action going forward.
    - Allocate to each federal agency a portion of each of the dollars reported
        - At no time should the total percentage allocated to the federal agencies equate to 99% or 100%!
        - When the government’s share is less than one percent, make sure the percentage is translated into the report correctly. For example, if the government’s allocation is 0.51%, make sure the percentage is entered as 0.51% and not 51%.

Note: Please remove these instructional pages and any instructional language (in blue) before submitting to the Contracting Officer for review and approval.

Commercial Subcontracting Plan Template
[***INSERT*** COMPANY NAME]
SMALL BUSINESS SUBCONTRACTING PLAN

I. IDENTIFICATION DATA:

Address: ____

Date Prepared: _____________________
Description of Types of Supplies/Services:
____

Contract Number: _________________

Unique Entity Identifier (UEI) : _*(under the contract awarded or pending award)*

Insert company Fiscal Year (FY) beginning and end dates

Commercial Plan Period: _*(Contractor's 12-month dates including year covered M/D/Y)*

Projected Annual Sales (Company-wide): ________________________________

II. GOALS:

FAR clause 52.219-9(d) NOV 2025)*) states that the subcontracting plan shall include the following: (1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business (including Alaska Native Corporations [ANCs] and Indian tribes), veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business (including ANCs and Indian tribes) and women-owned small business WOSB concerns as subcontractors.*

Remember:

- ***Commercial plans will always reflect annual company-wide goals***
- ***Dollars and percentages to Other than Small Business (OTSB) and total small businesses (including all socioeconomic subsets) must equal the total subcontracted to both categories in dollars and percentages.***
- ***An Offeror that is a mentor with an SBA-approved mentor-protégé agreement (see 13 CFR 125.9) that provides a subcontract to its protégé may apply the costs incurred for training it provides to its protégé toward its subcontracting plan goals, provided that protégé is a covered territory business or that protégé has its principal office located in the Commonwealth of Puerto Rico.***

[Company Name] provides the following separate dollar and percentage goals, which are a percentage of the total subcontracting dollars for each business category:

1. Estimated **TOTAL** dollars planned to be subcontracted **to all types of concerns (**generally for both commercial and government business, in support of commercial items sold during company fiscal year)**:**

Annual Commercial Purchases/Spend: $_________________ = 100% subcontracted

2. Total dollars planned to be subcontracted to those classified as **Other Than Small** Business concerns:

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

3. Total dollars planned to be subcontracted to **all Small business** concerns (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB small business concerns:

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

REMEMBER: COMPUTE THE PERCENTAGE FOR THE FOLLOWING BY USING THE TOTAL DOLLARS LISTED IN #1 ABOVE:

4. Total dollars planned to be subcontracted to **veteran-owned small** business concerns (including service-disabled veteran-owned small businesses):

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

5. Total dollars planned to be subcontracted to **service-disabled veteran-owned small** business concerns **(subset of VOSB above and cannot be higher than #4 above)**:

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

6. Total dollars planned to be subcontracted to **HUBZone small** business concerns:

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

7. Total dollars planned to be subcontracted to **small disadvantaged** business concerns (including ANCs and Indian tribes):

Annual Commercial Purchases/Spend: $__________________ = ___ % of Total

8. Total dollars planned to be subcontracted to **women-owned small** business concerns:

Annual Commercial Purchases/Spend: $_________________ = ___ % of Total

III. PRINCIPAL TYPES OF SUPPLIES AND SERVICES TO BE SUBCONTRACTED:
FAR clause 52.219-9(d)(3) (NOV 2025): Describe the principal types of supplies and services to be subcontracted and an identification of types of supplies or services planned for subcontracting to SB (including ANCs and Indian tribes),VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns.

The principal types of supplies and/or services [**Company Name**] to be subcontracted (outsourced) and the identification of the type of supply or service offered to each business concern are as follows. GSA requests inserting the applicable NAICS code[7] under the description:

Supplies/Service s (Including NAICS)	OTSB/ Large	Small	VOSB	SDVOSB	HUBZone	SDB	WOSB
Example - Painting NAICS 238230		X	X	X			

ATTACH ADDITIONAL SHEETS IF NECESSARY

Explain in the narrative of this section any low goals[8] and the actions planned in order to support your plan. Otherwise, your plan may be deemed unacceptable, preventing contract award.

NOTE: "zero" is not considered a "positive" goal which the FAR requires. Having a goal will provide the incentive for your company to make a "good faith effort" in fostering opportunities for Small business, SDB, WOSB, VOSB, SDVOSB and HUBZone SB. The contracting officer assesses whether you have made a "good faith effort" to implement and comply with the subcontracting plan.[9]

IV. DESCRIPTION OF METHOD USED TO DEVELOP SUBCONTRACTING GOALS:
FAR 52.219-9(d)(4) (NOV 2025): Describe the method used to develop the

[7] NAICS codes are found at: https://www.census.gov/naics/

[8] Low goals are those less than the Agency's subcontracting goals.

[9] See FAR 19.705-6(g). "Good faith effort" is described in SBA regulations 13 CFR 125.3(d)(3) and FAR 19.705-7(b).

subcontracting goals. Explain or state the basis for establishing your proposed goals (i.e. based on historical data and experience, market research, etc.).

[**Company Name**] used the following method to develop the subcontracting goals:

____

____

____

____

V. DESCRIPTION OF METHOD USED TO IDENTIFY POTENTIAL SOURCES:
FAR clause 52.219-9(d)(5 (NOV 2025)): Describe the method used to identify potential sources for solicitation purposes (e.g., existing company source lists, the System for Award Management (SAM), veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB source lists. Use of SAM or SBS as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.

[**Company Name**] identifies potential subcontractors using the following source lists and organizations (please list your sources used):

____

____

____

____

VI. INCLUSION OF INDIRECT COSTS IN ESTABLISHING GOALS: FAR clause 52.219-9(d)(6) (NOV 2025): State whether or not the Offeror included indirect costs in establishing subcontracting goals, and a description of the method used to determine the proportionate share of indirect costs to be incurred with SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns.

NOTE: CONTRACTORS SUBMITTING COMMERCIAL PLANS MUST INCLUDE INDIRECT COSTS[10] TO CAPTURE MAJOR COMPANY-WIDE EXPENSES AND MAXIMIZE OPPORTUNITIES FOR SMALL BUSINESSES.

Indirect costs HAVE BEEN included in the dollar and percentage subcontracting goals stated above.

Provide the method used to determine the proportionate share of indirect costs to be incurred with small business concerns for your contract below.

____
____
____

VII. PROGRAM ADMINISTRATOR: FAR clause 52.219-9(d)(7) (NOV 2025) requires the name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual. Please add the contact information for this person (telephone number and email address), in case of questions, and provide an alternate point of contact, if applicable.

Name: ____
Title/Position: ____
City/State/Zip Code:____
Telephone number: ____
Email Address: ____
Alternate POC with contact information: ________________________________

Duties: FAR clause 52.219-9(e) (NOV 2025) requires that in order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor **shall** perform the following functions. Include these in the subcontracting plan, indicating your compliance with FAR 52.219-9 (NOV 2025):

1. Assist SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns by arranging solicitations, sufficient time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential SB, VOSB, SDVOSB, HUBZone, SDB and WOSB subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

[10] Indirect costs represent the expenses of doing business that are NOT easily identified with a specific project (i.e. contract or grant) but are generally recognized as ordinary and necessary for the general operation of the Contractor's organization and the conduct of activities it performs. Types of indirect costs include routine supplies and general and administrative (G&A) expenses. However, fringe benefits (e.g. services or benefits provided to employees such as health insurance, payroll taxes, pension contribution, etc.), are NOT considered subcontracting and shall be excluded).

2. Provide adequate and timely consideration of the potentialities of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns in all “make-or-buy” decisions.

3. Counsel and discuss subcontracting opportunities with representatives of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB firms.

4. Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Small Business Search (SBS) at https://search.certifications.sba.gov/ .

5. Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as SB, VOSB, SDVOSB, HUBZone, SDB and WOSB for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor’s subcontracting plan.

6. For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2) on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a SB, VOSB, SDVOSB, HUBzone SB, SDB, or WOSB concern.

7. Assign each subcontract the NAICS code and corresponding size standard that best describes the principle purpose of the subcontract.

Other ways the Plan Administrator will ensure the company meets the goals of the plan **demonstrating “good faith effort”** [***Check those that will be done under this plan]***:

____Ensure the periodic rotation of potential subcontractors on bidders’ lists.

____Ensure that SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns are included on the bidders’ list for every subcontract solicitation for products and services they are capable of providing.

____Ensure that subcontract procurement “packages” are designed to permit the maximum possible participation of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.

____Review subcontract solicitations to remove statements, clauses, etc., which might tend to restrict or prohibit SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.

____Ensure that the subcontract bid proposal review board documents its reasons for not selecting any low bids submitted by SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.

____Oversee the establishment and maintenance of contract and subcontract award records.

____Attend or arrange for the attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.

____Directly or indirectly counsel SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns on subcontracting opportunities and how to prepare bids to the company.

____Conduct or arrange training for purchasing personnel regarding the intent and impact of Section 8(d) of the Small Business Act on purchasing procedures

____Develop and maintain an incentive program for buyers that support the subcontracting program.

____Monitor the company's performance and make any adjustments necessary to achieve the subcontract plan goals.

____Prepare and submit timely reports as outlined in Section X.

____Coordinate the company's activities during compliance reviews by Federal agencies

____Promote opportunities for small businesses on the company's website

____Additional Duties: *[If your company or program administrator will perform additional subcontracting duties not shown above, please identify them here]*

____

____

____

VIII. <u>EQUITABLE OPPORTUNITY</u>: FAR clause 52.219-9(d)(8) (NOV 2025) requires a description of the efforts the Offeror will make to assure that SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns have an equitable opportunity to compete for subcontracts.

[**<u>Company Name</u>**] will make every effort to ensure that all small business concerns have an equitable opportunity to compete for subcontracts. These efforts may include one or more of the following activities: (*please indicate which of the following apply or adapt the list to fit your company's efforts*)

A. Outreach efforts to obtain sources:

___ Contacting minority and small business trade associations

___ Contacting business development organizations

___ Requesting sources from the SBA's [Small Business Search] and/or the SAM.gov database

___ Attending small and minority business trade fairs and procurement conferences

B. Internal efforts to guide and encourage purchasing personnel:

___ Presenting workshops, seminars and training programs

___ Establishing, maintaining and using small, HUBZone small, small disadvantaged, women-owned small, veteran-owned small, and service-disabled veteran-owned small business source lists, guides, and other data for soliciting subcontracts

___ Monitoring activities to evaluate compliance with the subcontracting plan

C. Other efforts: (*Please describe below.*)

____

____

____

____

IX. <u>ASSURANCES OF CLAUSE INCLUSION AND FLOW DOWN:</u> FAR clause 52.219-9(d)(9) (NOV 2025) requires assurances that the Offeror will include the clause at 52.219-8, Utilization of Small Business Concerns (NOV 2025), in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g. ANCs, see 13 CFR 125.3(b)(2)) that receive subcontracts in excess of the subcontracting plan threshold specified in FAR 19.109(a) (GSA Class Deviation RFO-2025-19)) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

[**<u>Company Name</u>**] agrees to include the FAR Clause 52.219-8, "Utilization of Small Business Concerns" in all subcontracts that offer further subcontracting opportunities, and will require all subcontractors (*except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g. ANCs, see 13 CFR 125.3(b)(2)*) that receive subcontracts in excess of the subcontracting plan threshold specified in 19.109(a) (GSA Class Deviation RFO-2025-19) on the date of subcontract award to adopt a subcontracting plan that complies with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan (NOV 2025).

X. REPORTING AND COOPERATION: FAR clause 52.219-9(d)(10) (NOV 2025) requires assurances that the offeror will do the following:

[**Company Name**] agrees to:

- Cooperate in any studies or surveys as may be required.
- Submit periodic reports so that the Government can determine the extent of compliance by the Contractor with the subcontracting plan.
- Submit accurate Summary Subcontract Reports (SSR) in eSRS, pursuant to FAR 52.219-9(d)(10)(i) (NOV 2025), following the instructions provided on the eSRS, especially the guidance for accurately allocating a percentage of the subcontracted dollars to the federal agencies covered by the commercial subcontracting plan.
- Enter the SSR in eSRS within 30 days after the end of the Government's fiscal year, September 30, or as provided in agency regulations, following the directions on the eSRS homepage. **Note: Failing to submit reports on time may be an indication of a lack of "good faith effort".**
- Correct and submit a revised SSR within 30 days of notice of rejection by the contracting officer
- Ensure that its subcontractors with subcontracting plans agree to submit the ISR and or the SSR using eSRS.
    - Provide its prime contract number, its unique entity identifier, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs.
    - Require that each subcontractor with a subcontracting plan provide the prime contract number, its own unique entity identifier, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of or rejecting the ISRs, to its subcontractors with subcontracting plans.
- Submit a new commercial plan to the cognizant contracting officer 30 days prior to the expiration of the current plan.

Calendar Period	Report Due	Due by	with email address for:
10/01– 09/30	**SSR**	**10/30**	**Contracting Officer**

Assistance in report preparation can also be found in the instructional pages, in guidance documents on the eSRS home page, and/or from your local SBA Commercial Market Representative[11].

[11] https://www.sba.gov/document/support--commercial-market-representatives

Note: for contracts awarded by GSA's Public Building Service (PBS), select PBS as the "agency to which the report is being submitted", code 4740, in eSRS.

XI. RECORDKEEPING: FAR clause 52.219-9(d)(11) (NOV 2025) requires a description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the efforts to locate SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns and to award subcontracts to them.

[**Company Name**] will maintain records concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of efforts to locate SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

1. Source lists (*e.g.,* SAM), guides, and other data that identify SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns.

2. Organizations contacted in an attempt to locate sources that are SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), or WOSB concerns.

3. Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2), as of the date of the subcontract award, indicating whether the following business concerns were solicited and if not, why not:
   (A) Small businesses
   (B) Veteran-owned small businesses
   (C) Service-disabled veteran-owned small businesses
   (D) HUBZone small businesses
   (E) Small disadvantaged businesses
   (F) Women-owned small businesses
   If applicable, the reason award was not made to a small business concern.

4. Records of any outreach efforts to contact:
   (A) Trade associations
   (B) Business development organizations
   (C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources
   (D) Veterans service organizations

5. Records of internal guidance and encouragement provided to buyers through

(A) Workshops, seminars, training, etc.
(B) Monitoring performance to evaluate compliance with the program's requirements

6. Other records to support your compliance with the subcontracting plan: (*Please describe below*.)

____

____

XII. ADDITIONAL ASSURANCES:

- [**Company Name**] will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal.

- [**Company Name**] will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services or materials or obtain the performance of construction work as described in (d)(12) of FAR clause 52.219-9 (NOV 2025). This written explanation must be submitted to the Contracting Officer within 30 days of contract completion.

- [**Company Name**] will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to the payment to or utilization of a subcontractor; and

- [**Company Name**] assures that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if [**Company Name**] pays a reduced or an untimely payment to a small business subcontractor (see FAR clause 52.242-5 (NOV 2025)).

XIII. COMMITMENT TO MAKE A "GOOD FAITH EFFORT"

[**Company Name**] shall make a good faith effort to achieve the small business goals described in this plan by taking the efforts described below in addition to the efforts listed under Sections IV, VIII and Section IX of this plan: **[List additional efforts]**.

____

____

XIV. STATUTORY REQUIREMENTS

The above requirements will be negotiated with the Contracting Officer prior to approval. **The Contracting Officer must that an acceptable plan is incorporated into and made a material part of the contract**. Failure to submit and negotiate the subcontracting plan shall make the Offeror ineligible for award of a contract.

As stated in 15 U.S.C. 637(d)(9), any contractor or subcontractor failing to comply in good faith with the requirements of the subcontracting plan is in material breach of its contract. Further, 15 U.S.C. 637(d)(4)(F) directs that a contractor's failure to make a good faith effort to comply with the requirements of the subcontracting plan shall result in the imposition of liquidated damages[12].

XV. SIGNATURE REQUIRED: *Plan must be* ***signed*** *and* ***dated*** *by a company official.*

This subcontracting plan was SUBMITTED by:

Signature: ____

Typed Name: ____

Company Title: ____

Date Signed: ____

Government Contracting Officer APPROVAL:

Signature: ____

Printed Name: ____

Agency: ____

Date Signed: ____

12 FAR 52.219-16, Liquidated damages - Subcontracting Plan (NOV 2025).

MODEL INDIVIDUAL SUBCONTRACTING PLAN
INSTRUCTIONAL REMINDERS

Remove these instructional pages before submitting your completed subcontracting plan to the Contracting Officer

An individual subcontracting plan:

- Applies to a specific federal agency (GSA) single contract
- Covers the entire contract period, including all options whether exercised or not
- Contains goals that are based on the offeror's planned subcontracting (and purchasing) in support of the specific contract
- Indirect costs incurred for common or joint purposes may be included in the plan, allocated on a prorated basis to the contract. If included in the plan, indirect costs must be included in the reports after award.
- For contracts with option periods, the individual plan will include:
  - separate goals for the base period
  - separate goals for each option period
  - a sum total of all periods for the entire contract term

NOTE: The Model Individual Subcontracting Plan template is a tool contractors may choose to use when preparing their Individual subcontracting plans. It is not mandatory for contractors to use this tool, they need only to ensure they have included all statutory elements.

The Model Individual Subcontracting plan:

- **Is NOT a fill-in-the-blank form**
- **Does not replace the FAR requirements listed in clause 52.219-9 Small Business Subcontracting Plan (NOV 2025)**
- **Reflects objectives GSA encourages contractors to adopt. Contractors are not required to use GSA goals as their own.**

REMINDER: WHEN SELECTING INDIVIDUAL SUBCONTRACTING PLAN TYPE, UNDER A MULTIPLE AWARD ID/IQ CONTRACT USED BY MORE THAN ONE AGENCY, CONTRACTORS ARE REQUIRED TO REPORT SMALL BUSINESS SUBCONTRACTING FOR EACH FUNDING- AGENCY- ISSUED ORDER IN THE GOVERNMENT-WIDE

ELECTRONIC SUBCONTRACTING REPORTING SYSTEM (ESRS) AFTER AWARD[1].

[1] FAR 52.219-9 (d)(10)(iii) (NOV 2025)

Use the Individual Subcontracting Plan Template:

- For a new contract award whose total value, including options, exceeds the subcontracting plan threshold listed in FAR 19.109(a)(1) (GSA Class Deviation RFO-2025-19)
- For existing contracts when:
  - either a contract modification causes the value of the contract to exceed the threshold required for a subcontracting plan, OR
  - as a result of size changes due to re-representation (FAR 52.219-28 (NOV 2025)). When a subcontracting plan is required, the plan shall cover the remaining periods of the contract.[2]

Before preparing the subcontracting plan:

- **Review the requirements set forth in the FAR, particularly:**
  - FAR 19.109(a)(1) (GSA Class Deviation RFO-2025-19)
  - FAR 19.206-2 Elements of the subcontracting plan (GSA Class Deviation RFO-2025-19)
  - FAR 19.302 Small business subcontracting plans (GSA Class Deviation RFO-2025-19)
  - FAR clause 52.219-8, Utilization of Small Business Concerns[3] (NOV 2025)
  - FAR clause 52.219-9, Small Business Subcontracting Plan (NOV 2025)
  - FAR clause 52.219-16, Liquidated Damages - Subcontracting Plan (NOV 2025)

- **Understand the statutory requirements in 15 USC 637(d):**

  - Any contractor receiving a contract for more than the simplified acquisition threshold **must agree** in the contract that Small Business (SB) (including Alaska Native Corporations [ANCs] and Indian tribes), veteran-owned small business (VOSB), service-disabled veteran-owned small business (SDVOSB), HUBZone small business, small disadvantaged business (SDB) , and women-owned small business (WOSB) concerns will have the maximum practicable opportunity **to participate in contract performance** consistent with its efficient performance.

[2] FAR 19.302-1 (GSA Class Deviation RFO-2025-19)

[3] Note the requirement in this clause indicating you agree to implement the U.S. policy to maximize opportunities for SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone small businesses to participate as subcontractors to the **"fullest extent"**.

- Timely pay amounts due pursuant to the terms of their subcontracts with SBs, VOSBs, SDVOSBs, HUBZone, SDBs (including ANCs and Indian tribes), and WOSB concerns.

- **Failure to submit and negotiate the subcontracting plan shall make the Offeror ineligible for award of the contract.**

- **Understand the representation requirements to be eligible as subcontractor under a subcontracting plan, as listed in FAR 19.302-2(a)(1) (GSA Class Deviation RFO-2025-19).**

- **Recognize that the negotiated subcontracting plan will become a material part of the contract upon award[4] subject to monitoring by the federal government after award.** "Material" means it is just as important as the specifications, delivery schedule and price of the prime contract and is subject to the assessment of liquidated damages for failing to make a "good faith effort."[5] Monitoring will be done by examining subcontracting plan reports. Small business subcontracting performance will be considered by the government as part of the annual performance evaluations.

- **Understand the reporting requirements[6] after award (FAR 52.219-9(l)) (NOV 2025). Submit required reports in the government-wide Electronic Subcontract Reporting System (eSRS):**
    - Individual plans require three (3) reports each year:
        - Two (2) Individual Subcontract Reports (ISRs), including task order level reporting for IDIQ contracts whose intended purpose is to be used by all federal agencies[7]
            - Mid-year ISR - reporting period: October 1st – March 31st – due April 30th
            - End-year ISR reporting period: April 1st – September 30th – due October 30th
        - One (1) Summary Subcontract Report (SSR) due no later than October 30th each year
    - Final ISR due 30 days after contract completion
    - Due dates for reports are often extended based on SBA discretion, reach out to GSA OSDBU if you have questions about the due date.

---

[4] FAR 19.206-3(e)(5) (GSA Class Deviation RFO-2025-19)

[5] "Good faith effort" is defined in the Small Business Administration regulations at 13 CFR 125(d)(3).

[6] Submit the reports pursuant to the due dates provided by the contracting officer which are either as prescribed in FAR 52.219-9 or pursuant to the SBA due dates listed in 13 CFR 125.3(d).

[7] FAR 52.219-9(d)(10)(iii) (GSA Class Deviation RFO-2025-52)

Note: for more information, check out the SBA website where you can find the subcontracting regulations, compliance reviews and points of contact: SBA Prime-Subcontracting

Prepare the individual subcontracting plan:

- Determine what will be subcontracted (supplies and services) throughout the life of the contract and the estimated costs of the subcontracts.
- Identify the size and socio-economic categories of your suppliers, especially SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone small businesses. Best practice: if the size status of a supplier is unknown, check with the supplier to see if they are eligible as small business subcontractors for the NAICS applying to the subcontract. If small, do they also meet the definition and representation requirements of one or more of the socio-economic categories: SDB, WOSB, VOSB, SDVOSB or HUBZone?
- **Market research – Market research – Market Research!** Find new SB, SDB, WOSB, VOSB, SDVOSB and HUBZone suppliers who can meet the needs of the contract. If this is a follow-on or similar contract, does market research reveal greater opportunities for all types of small business than found in the past? Check the Small Business Search: **SBS Website**
- Calculate small business subcontracting goals, ensuring estimated dollars are applied against all socio-economic categories represented by the small business (e.g., apply the same amount of dollars across multiple designations). Goals must reflect good faith efforts and realistic stretch goals. Once the determination is made on what will be subcontracted, adapt the Model Plan to fit your subcontracting situation. Ensure the subcontracting plan reflects best faith efforts and realistic **stretch** goals. Put thought into maximum practicable opportunities that might be possible and achievable for all socio-economic categories as well as small business throughout the life of the contract.
- Complete the tables for each period of the contract, taking into consideration the time covered by the base period and each option (1 year? 5 years? 10 years?).
- Include a summary table, adding all periods of performance (base + options) together.
- Ensure the narrative of the subcontracting plan supports the proposed goals:
    - For example, does the description of what will be subcontracted match the goals proposed?
    - Does supporting information from similar contracts, or past contracts support the proposed goals?

- To submit the individual subcontracting plan:
  - Complete Section I. Identification Data in the Model Template. List the annual goals (or spend) for each socio-economic category listed in the individual plan format provided under Section II, Goals.
  - Complete Sections III through XIV, ensuring a company official signs the plan under XV.

How to increase small business participation?

- **Market research – Market research – Market research!**
- **Resources to find small businesses:**
  - **SBA Commercial Market Representative**: **SBA CMRs**
  - **APEX Accelerators: APEX Accelerators (formerly known as Procurement Technical Assistance Centers: PTAC website)**
  - **SBA's Subnet** (helps prime contractors find small business subcontractors): **SBA Subnet website**
  - **Trade and professional organizations and conferences**
  - **Department of Commerce Minority Business Development Agencies: MBDA website**
  - **State, county, city minority business offices**
  - **Small, minority, women-owned, veteran business organizations**
  - **Local chambers of commerce: Chambers of Commerce website**
  - **Department of Veterans Affairs (VOSBs and SDVOSBs)**
  - **Small Business Search: SBS website** (formerly known as Dynamic Small Business Search)
- **See if current suppliers meet the size status for the NAICS code that best describes the subcontract and the socio-economic definitions in FAR Part 2 (GSA Class Deviation RFO-2025-2) and representation requirements listed in FAR 19.302-2(a)(1) (GSA Class Deviation RFO-2025-19).**

  - **Eligibility as a subcontractor**: Small Businesses and Small Disadvantaged Businesses
    - represents itself as a small business by size stats for NAICS code that best describes the *subcontract* and the socio-economic definitions in FAR Part 2 (GSA Class Deviation RFO-2025-2)
    - Prime contractor cannot require subcontractor to register in System for Award Management (SAM), and may take subcontractor on self-attestation they meet the size standard
  - **Eligibility as a subcontractor:** Hubzone, WOSB, SDVOSB, VOSB
    - MUST be certified by SBA
    - Check certification at the Small Business Search
  - Again, **a company cannot be required to be registered in SAM** by a prime contractor. What's the difference between SBS and SAM?
    - SAM
      - Official registration database

        - Every company that wants to do business with government as a PRIME contractor MUST register here
        - Shows company’s self-certification of small and socioeconomic small business
        - Includes NAICS codes, Key contact information

    - SBS
        - Database for verifying small business details including SBA certifications such as: 8(a), HUBZone, WOSB/EDWOSB and SDVOSB/VOSB
        - In addition to NAICS and Key contact info, it Also shows company capabilities narratives.

- **Break out elements of large contracts into smaller contracts suitable for small business participation.**

- **Perform the required functions under FAR 52.219-9(e) (NOV 2025):**
    - Arrange solicitations, time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZones.
    - Where the Contractor’s lists of potential SBs, SDBs, WOSBs, VOSBs, SDVOSBs, and HUBZone small business subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.
    - Adequate and timely consideration of the potentialities of small business, veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, and women-owned small business concerns in all “make-or-buy” decisions.
    - Counsel and discuss subcontracting opportunities with representatives of SBs, SDBs, VOSBs, SDVOSBs, WOSBs and HUBZone small businesses
    - Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern in accordance with 52.219-8(e) (NOV 2025).
    - Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as small, veteran-owned small business, HUBZone small, small disadvantaged, or women-owned small business for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor’s subcontracting plan.
    - For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2) on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the Contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a small business, veteran-owned small business,

service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business, or women-owned small business concern.
- Assign each subcontract the NAICS code and corresponding size standard that best describes the principal purpose of the subcontract.

How do I develop subcontracting goals?

Note: The following sample goals & tips are offered to assist you with calculating the subcontracting plan goals to be listed in the individual subcontracting plan:

- Decide what your company can provide internally, then determine what is left to outsource
- Estimate total subcontracting dollars ("outsourcing", "purchases" or "spend") planned to both small and "other than small" business[8] (OTSB) concerns for each period of the contract (base period and each option period):
- Separately identify the dollars that will be subcontracted to both large/OTSB and to small businesses, which when added together make up the total dollars subcontracted to all concerns and 100%.
- For the small businesses, identify if your supplier meets representation requirements for one or more of the small business socio-economic categories SDB; WOSB; VOSB; SDVOSB and HUBZone. Note: small businesses can meet more than one socio-economic category.
- Apply the subcontracted dollars towards all small business socio-economic categories applicable to your suppliers. For example, a $30,000 subcontract awarded to a woman-owned, HUBZone, service-disabled veteran owned small business:
    - apply $30,000 against WOSB
    - apply $30,000 against HUBZone
    - apply $30,000 against SDVOSB
    - apply $30,000 against VOSB (since a SDVOSB is a VOSB)
    - apply $30,000 against small business since WOSB, HUBZone and SDVOSB are socio-economic small business subcategories.

[8] The term "other than small business is used to indicate all other certifications that are not small. Examples include non-profits, universities and educational institutions, utilities, state and local governments.

Note: This is not double/triple counting, but ensures credit is given to all socio-economic categories represented by the small business

- The small business dollar amount must include all small business socio-economic subcategories; i.e., VOSB, SDVOSB, HUBZone, SDB, WOSB, (plus any "other small" businesses that do not fall within one of these specified subgroups). Note: include Alaskan Native Corporations (ANCs) and Indian tribes are included in both the SDB and total small business amounts.

- Once the dollars have been assigned to each socio-economic category, calculate the percentage for each category separately against the "Total dollars to be subcontracted." Percent goals for each of these small business socio-economic categories must be expressed as a percentage of the TOTAL subcontracting dollars to all concerns (both OTSB and small)[9]

*** Caution: Only the OTSB total plus the small business total should equal the total dollars to be subcontracted in both dollars and percent. See calculation "notes" within Section II of this template for further assistance.**

Do <u>NOT</u> add together the small business socio-economic subcategories to reach the total <u>small</u> business figure, as the same dollars should already be included in the total for small business.

Planned Subcontracting by Business Size	Sample Dollars	Sample Goals
Total Subcontracted Dollars	**$1,000,000**	**100%**
Other than Small Business (OTSB/Large)	**$750,000**	**75%**
All Small (includes Veteran-Owned Small, Service-Disabled Veteran-Owned Small, HUBZone small, Small Disadvantaged Business, Women-Owned Small, and other small business concerns, i.e., ANCs, etc.	**$250,000**	**25%**

The Total dollars to be subcontracted will be used as the denominator in calculating the percentages for each socio-economic category.

Identify subcontracts awarded to the small business socio-economic subcategories and calculate the percentages using the total subcontract dollars as the denominator:

[9] A Contracting Officer **may** also require the goals to be calculated as a percentage of total **contract** dollars, in addition to the goals required as a percentage of subcontracted dollars. Usually this is requested when GSA is acquiring products/services for another agency such as the Department of Defense.

Planned Subcontracting by Business Size	Sample Dollars	Sample Goals
Veteran-Owned Small Business	**$50,000**	**5%**
Service-Disabled Veteran-Owned Small Business[10]	**$50,000**	**5%**
HUBZone Small Business	**$50,000**	**5%**
Small Disadvantaged Business	**$50,000**	**5%**
Women-Owned Small Business	**$50,000**	**5%**

REMINDER: in calculating the goals for each period of performance remember that each period of the contract can be more than one year in duration. GSA examples include:

- Leases whose firm term is often 10 years in duration
- Multiple Award Schedule contracts whose base period and each option period is five years in duration
- Government-wide Acquisition Contracts, such as OASIS or Alliant2, often have 5 year base periods and 5 year option

Who reviews subcontracting plans? FAR subpart 19.206-3 (GSA Class Deviation RFO-2025-19) indicates the contracting officer is responsible for reviewing the subcontracting plan for adequacy, ensuring it includes the required information, goals, and assurances. Further they:

- Negotiate an acceptable plan with the contractor.
- Consider recommendations by the agency small business technical advisor (SBTA) as well as the Small Business Administration Procurement Center Representative (SBA PCR). These are the technical experts when it comes to small business and are required to review the plans per the FAR.
- Consider the contractor's past performance in meeting small business subcontracting goals on past or similar contracts as a part of determining if the offeror is responsible.

How does a contracting officer review a subcontracting plan?

- Do the goals proposed demonstrate "**maximum practicable opportunity"** for SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone to participate in the performance of the contract" as required by 15 USC 637(d)?
- Does the narrative support the goals proposed? Think of the small business goals as the thesis statement and ensure the rest of the plan supports how the goals will be achieved throughout the life of the contract.

[10] SDVOSB should always be less than or equal to VOSB. By definition, a SDVOSB is also a VOSB.

- Is the plan complete? Are all requirements for a plan as listed in FAR clause 52.219-9 (NOV 2025) addressed? The Model Plan lists all of the requirements.
- Like any goal, does the goals proposed build on past achievement?
- Does the plan demonstrate how your company will keep its market research fresh to find qualified SBs, SDBs, WOSBs, VOSBs, SDVOSBs and HUBZone?
- How do the estimated goal percentages compare with the Agency's subcontracting goals?
    - Agency goals are provided as information only. Contractors (and COs) should avoid using agency goals as the objective in negotiating small business subcontracting plans which can result in establishing "minimums" for small business instead of creating "maximum practicable opportunities", as required by the Small Business Act.
- Are there any "0" proposed? Provide an explanation as zero is not considered a "positive" goal which the FAR requires. Can you find some dollars to give to the small business entity, maybe allocated from the indirect cost pool?

REPORTING INSTRUCTIONS FREQUENTLY ASKED QUESTIONS FOR CONTRACTORS

Why are subcontracting reports important?

Agencies are to make “maximum practicable opportunities” for SBs to participate in federal contracting through prime and subcontracts, as required by the Small Business Act. Subcontracting reports demonstrate SB participation as well as compliance with the negotiated subcontracting plan, which becomes a **material part of the contract once approved**. Failure to submit the reports, as required under FAR 52.219-9 (NOV 2025), may negatively affect contractor performance evaluations and or may indicate a lack of good faith effort to maximize practicable subcontracting opportunities for SBs, SDBs, WOSBs, VOSB, SDVOSBs and HUBZone small businesses as required by law.

What reports are required for an *individual* subcontracting plan?

There are two types of reports required for individual subcontracting plans:

1. ***Individual Subcontracting Report (ISR)*** is contract specific.
    a. Data presented in the ISRs are cumulative over the life of the contract
    b. When a subcontracting plan contains separate goals for the basic contract and each option, the dollar goal inserted on the ISR shall be the sum of the base period through the current option. For example, for a report submitted after the second option is exercised, the dollar goal would be the sum of the goals for the basic contract, the first option, and the second option.
    c. If a subcontracting plan has been added to the contract pursuant to FAR 19.302-1 (GSA Class Deviation RFO-2025-19) or FAR 19.301(e) (GSA Class Deviation RFO-2025-19), the Contractors achievements must be reported in the ISR on a cumulative basis from the date of incorporation of the subcontracting plan into the contract.
    d. Includes indirect costs in the report if the goals of the individual subcontracting plan included indirect costs.
    e. Three (3) ISRs are due within 30 days of the end of each reporting period, unless directed otherwise by the Contracting Officer:
        i. Mid-year ISR for the period ending March 31
        ii. Year-end ISR for the period ending September 30
        iii. Final ISR for the contract within 30 days of contract completion

2. ***Individual Plan Summary Subcontracting Report (SSR)*** is agency-specific:
    a. Encompasses all subcontracting under prime contracts and subcontracts the contractor has with an executive agency (GSA), regardless of the dollar value of the subcontracts.
    b. If the Contractor or a subcontractor is performing work for more than one executive agency, a separate report shall be submitted to each executive agency covering only that agency’s contracts, provided at least one of that agency’s contracts is over the subcontracting plan threshold listed in FAR

19.109(a) (GSA Class Deviation RFO-2025-19) and contains a subcontracting plan.

c. Includes indirect costs on a prorated basis when the indirect costs are excluded from the subcontracting goals.
d. The annual SSR is due by October 30 for the twelve month period ending September 30. When a Contracting Officer rejects an SSR, the Contractor shall submit a revised report within 30 days of receiving the notice of SSR rejection.

I am unable to submit my first ISR in eSRS. What do I do?
Notify the contracting officer. It is probably due to a coding issue in the Federal Procurement Data System (FPDS) when the contract was awarded or when the modification was issued as a result of re-representation. FPDS must indicate that a subcontracting plan is required.

Note: Please remove these instructional pages and any instructional language (in blue) before submitting to the Contracting Officer for review and approval.

Individual Subcontracting Plan Template
[***INSERT*** COMPANY NAME]
SMALL BUSINESS SUBCONTRACTING PLAN

I. IDENTIFICATION DATA:

Address: ____

Date Prepared: ____
Description of Types of Supplies/Services: _________________________
Solicitation Number: _______________________________________
Contract Number: ____
(*Mark N/A unless a plan is now required as a result of a contract modification or re-representation (FAR 52.218-28* (NOV 2025)*)*

List the periods of performance for the base period and each option period, as applicable.

Individual Plan Period(s) of Performance:
Base: *Date of Award through (Date)*
Option 1:
Option 2:
Option 3:
Option 4: *(if applicable)*

Estimated Contract Value: *(Provide separate estimate for basic contract and each option)*
Base Period: $_______________
Option Period 1: $____________
Option Period 2: $____________
Option Period 3: $____________
Option Period 4: $____________ *(if applicable)*

Include sum Total value of the contract of all periods for the entire contract term. For MAS list the total sales expected: $_____________________________________

Place of Performance: _________________________ ***(Identify or list "Multiple")***

Unique Entity Identifier (UEI): ____
(If this is an existing contract, insert the UEI used at time of contract award.)

II. GOALS:

FAR clause 52.219-9(d) (NOV 2025) requires the subcontracting plan include the following:

" (1) Separate goals, expressed in terms of total dollars subcontracted, and as a percentage of total planned subcontracting dollars, for the use of small business (including ANCs and Indian tribes), veteran-owned small business, service-disabled veteran-owned small business, HUBZone small business, small disadvantaged business (including ANCs and Indian tribes) and women-owned small business WOSB concerns as subcontractors.

For **individual** subcontracting plans, **and if required** by the Contracting Officer[11], goals shall also be expressed in terms of percentage of total contract dollars, in addition to the goals expressed as a percentage of total subcontract dollars. The Offeror shall include all subcontracts that contribute to contract performance, and may include a proportionate share of products and services that are normally allocated as indirect costs.

(2) A statement of total dollars planned to be subcontracted for an individual subcontracting plan;"

Remember:

- **Individual plans reflect contract-specific goals, including separate statements and goals for the base contract (period) and for each option.[12]**
- **Dollars and percentages to "other than small business" (OTSB) and total small businesses (including all socio-economic subsets) must equal the total subcontracted to both categories in dollars and percentages.**
- **An Offeror that is a mentor with an SBA-approved mentor-protégé agreement (see 13 CFR 125.9) that provides a subcontract to its protégé may apply the costs incurred for training it provides to its protégé toward its subcontracting plan goals, provided that protégé is a covered territory business or that protégé has its principal office located in the Commonwealth of Puerto Rico.**

COMPLETE THE GOAL FORMAT:

- **Complete the table for the base period of the contract and for each option period, if any. Best practice: show growth in goal achievement from base period through each option period.**
- **Complete the Total Goals (Sum of all periods) table which follows the individual period sections. (see Table 6)**

[Company Name] provides the following separate dollar and percentage goals, which are a percentage of the total subcontracting dollars for each business category [plus a percentage of total contract value – delete bracketed language if not expressly required by the contracting officer]:

[13] Note: the base period for MAS contracts is typically five years.

[13] Note: the base period for MAS contracts is typically five years.

Table 1. Base Period Goals[13]

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[14]
Total Dollars to be Subcontracted[15]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[13] Note: the base period for MAS contracts is typically five years.

[14] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.

[15] Total dollars subcontracted is the sum of “other than small business” and all small business.

Table 2. Option Period I[16]

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[17]
Total Dollars to be Subcontracted[18]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[16] Note: Option Period I is five years for MAS contracts.

[17] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.

[18] Total dollars subcontracted is the sum of “other than small business” and all small business.

Table 3. Option Period II[19]

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[20]
Total Dollars to be Subcontracted[21]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[19] Note: Option Period II for MAS contracts is five years.
[20] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.
[21] Total dollars subcontracted is the sum of “other than small business” and all small business.

Table 4. Option Period III[22]

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[23]
Total Dollars to be Subcontracted[24]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[22] Note: Option Period III is five years for MAS contracts.

[23] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.

[24] Total dollars subcontracted is the sum of "other than small business" and all small business.

Table 5. Option Period IV[25]

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[26]
Total Dollars to be Subcontracted[27]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[25] Not Applicable for MAS contracts.
[26] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.
[27] Total dollars subcontracted is the sum of “other than small business” and all small business.

The Total Goals (sum of all periods, base + option(s)) table below provides a comprehensive look at subcontracting opportunities for the entire contract.

- ***Add the total dollars estimated for each period of the contract and socio-economic category and place the amounts in the spaces below.***
- ***Compute the percentages for each category for the entire contract.***

Table 6. Total Goals/Sum

Planned Subcontracting by Business Size	Whole Dollars	Percent of Subcontracted Dollars	Percent of Contract Dollars[28]
Total Dollars to be Subcontracted[29]	$	100%	
Other than Small Business (OTSB/Large)	$		
All Small Businesses (including ANC and Indian tribes)	$		
Veteran-Owned Small Business (VOSB)	$		
Service-Disabled Veteran-Owned Small Business (SDVOSB)	$		
HUBZone Small Business	$		
Small Disadvantaged Business (SDB) (to include ANCs and Indian tribes)	$		
Women-Owned Small Business (WOSB)	$		

[28] Complete this column only if required by the funding agency and requested by the contracting officer, otherwise delete the column.
[29] Total dollars subcontracted is the sum of “other than small business” and all small business.

III. PRINCIPAL TYPES OF SUPPLIES AND SERVICES TO BE SUBCONTRACTED:

FAR clause 52.219-9(d)(3) (NOV 2025): Describe the principal types of supplies and services to be subcontracted and an identification of types of supplies or services planned for subcontracting to SB (including ANCs and Indian tribes),VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns[30].

The principal types of supplies and/or services to be subcontracted (outsourced) and the identification of the type of supply or service offered to each business concern are as follows. GSA requests inserting the applicable NAICS[31] code under the description:

Supplies/Services	OTSB/ Large	Small	VOSB	SDVOSB	HUBZone	SDB	WOSB
Example-Painting NAICS 238230		X	X	X			

ATTACH ADDITIONAL SHEETS IF NECESSARY

Explain in the narrative of this section any low goals[32] and the actions planned in order to support your plan. Otherwise, the your plan may be deemed unacceptable, preventing contract award.

NOTE: "zero" is not considered a "positive" goal which the FAR requires. Having a goal will provide the incentive for your company to make a "good faith effort" in fostering opportunities for Small Business, SDB, WOSB, VOSB, SDVOSB and HUBZone SB. The contracting officer assesses whether you have made a "good faith effort" to implement and comply with the subcontracting plan.[33]

---

[30] FAR 52.219-9(d)(3) (GSA Class Deviation RFO-2025-52)

[31] NAICS codes are found at: https://www.census.gov/naics/

[32] Low goals are those less than the Agency's subcontracting goals

[33] Good faith effort is addressed in FAR 19.302-2(b) (GSA Class Deviation RFO-2025-19), FAR19.302-2(c)(2) (GSA Class Deviation RFO-2025-19), and SBA regulations 13 CFR 125.3(d)(3).

IV. DESCRIPTION OF METHOD USED TO DEVELOP SUBCONTRACTING GOALS:
FAR clause 52.219-9(d)(4) (NOV 2025): Describe the method used to develop the subcontracting goals. Explain or state the basis for establishing your proposed goals (i.e., based on historical data and experience, market research, etc.)

[**Company Name**] used the following method to develop the subcontracting goals:

____

____

____

____

V. DESCRIPTION OF METHOD USED TO IDENTIFY POTENTIAL SOURCES:
FAR clause 52.219-9(d)(5) (NOV 2025)*: Describe the method used to identify potential sources for solicitation purposes (*e.g.*, existing company source lists, the System for Award Management (SAM), veterans service organizations, the National Minority Purchasing Council Vendor Information Service, the Research and Information Division of the Minority Business Development Agency in the Department of Commerce, or small, HUBZone, small disadvantaged, and women-owned small business trade associations). A firm may rely on the information contained in SAM as an accurate representation of a concern's size and ownership characteristics for the purposes of maintaining SB, VOSB, SDVOSB, HUBZone, SDB, and WOSB source lists. Use of SAM as its source list does not relieve a firm of its responsibilities (e.g., outreach, assistance, counseling, or publicizing subcontracting opportunities) in this clause.*

[**Company Name**] identifies potential subcontractors using the following source lists and organizations (please list your sources used):

____

____

____

____

VI. INCLUSION OF INDIRECT COSTS IN ESTABLISHING GOALS:

FAR clause 52.219-9(d)(6) (NOV 2025) State whether or not the Offeror included indirect costs in establishing subcontracting goals for and a description of the method used to determine the proportionate share of indirect costs to be incurred with SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns.

Indirect costs _____HAVE BEEN (or) _____HAVE NOT BEEN included in the dollar and percentage subcontracting goals stated above.

If indirect costs HAVE been included in the individual subcontracting plan, describe the method used to determine the proportionate share of indirect costs to be incurred with small business concerns under the contract.[34]

____
____
____

VII. **PROGRAM ADMINISTRATOR:** FAR clause 52.219-9(d)(7) (NOV 2025) requires the name of the individual employed by the Offeror who will administer the Offeror's subcontracting program, and a description of the duties of the individual. Please add the contact information for this person (telephone number and email address), in case of questions, and provide an alternate point of contact, if applicable.

Name: ____
Title/Position: ____
City/State/Zip Code:____
Telephone number: ____
Email Address: ____
Alternate POC with contact information: _____________________________________

Duties: FAR clause 52.219-9(e) (NOV 2025) requires that in order to effectively implement this plan to the extent consistent with efficient contract performance, the Contractor **shall** perform the following functions. Include these in the subcontracting plan, indicating your compliance with FAR 52.219-9(e) (NOV 2025):

1. Assist SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns by arranging solicitations, sufficient time for the preparation of bids, quantities, specifications, and delivery schedules so as to facilitate the participation by such concerns. Where the Contractor's lists of potential SB, VOSB, SDVOSB, HUBZone, SDB and WOSB subcontractors are excessively long, reasonable effort shall be made to give all such small business concerns an opportunity to compete over a period of time.

2. Provide adequate and timely consideration of the potentialities of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns in all "make-or-buy" decisions.

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[34] Including indirect costs may be beneficial to avoid "0" goals. If indirect costs are included in the goals, these costs must be included in the Individual Subcontract Report submitted into eSRS.

3. Counsel and discuss subcontracting opportunities with representatives of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB firms.

4. Confirm that a subcontractor representing itself as a HUBZone small business concern is certified by SBA as a HUBZone small business concern by accessing SAM or by accessing the Small Business Search (SBS) at https://search.certifications.sba.gov/.

5. Provide notice to subcontractors concerning penalties and remedies for misrepresentations of business status as SB, VOSB, SDVOSB, HUBZone, SDB and WOSB for the purpose of obtaining a subcontract that is to be included as part or all of a goal contained in the Contractor's subcontracting plan.

6. For all competitive subcontracts over the simplified acquisition threshold, as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2) on the date of subcontract award, in which a small business concern received a small business preference, upon determination of the successful subcontract offeror, prior to award of the subcontract the contractor must inform each unsuccessful small business subcontract offeror in writing of the name and location of the apparent successful offeror and if the successful subcontract offeror is a SB, VOSB, SDVOSB, HUBZone SB, SDB, or WOSB concern.

7. Assign each subcontract the NAICS code and corresponding size standard that best describes the principle purpose of the subcontract.

Other ways the Plan Administrator will ensure the company meets the goals of the plan **demonstrating "good faith effort"** [***Check those that will be done under this plan]***:

____Ensure periodic rotation of potential subcontractors on bidders' lists.
____Ensure that SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns are included on the bidders' list for every subcontract solicitation for products and services they are capable of providing.
____Ensure that subcontract procurement "packages" are designed to permit the maximum possible participation of SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.
____Review subcontract solicitations to remove statements, clauses, etc., which might tend to restrict or prohibit SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.
____Ensure that the subcontract bid proposal review board documents its reasons for not selecting any low bids submitted by SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns.
____Oversee the establishment and maintenance of contract and subcontract award records.
____Attend or arrange for the attendance of company counselors at Business Opportunity Workshops, Minority Business Enterprise Seminars, Trade Fairs, etc.
____Directly or indirectly counsel SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns on subcontracting opportunities and how to prepare bids to the company.
____Conduct or arrange training for purchasing personnel regarding the intent and impact of Section 8(d) of the Small Business Act on purchasing procedures

____Develop and maintain an incentive program for buyers that support the subcontracting program.
____Monitor the company's performance and make any adjustments necessary to achieve the subcontract plan goals.
____Prepare and submit timely reports as outlined in Section X.
____Coordinate the company's activities during compliance reviews by Federal agencies
____Promote opportunities for small businesses on the company's website
____Additional Duties: (*If your company or program administrator will perform additional subcontracting duties not shown above, please identify them here):*

____

____

____

VIII. EQUITABLE OPPORTUNITY: FAR clause 52.219-9(d)(8) (NOV 2025) requires a description of the efforts the Offeror will make to assure that SB, VOSB, SDVOSB, HUBZone, SDB and WOSB concerns have an equitable opportunity to compete for subcontracts.

[**Company Name**] will make every effort to ensure that all small business concerns have an equitable opportunity to compete for subcontracts. These efforts may include one or more of the following activities: (*please indicate which of the following apply or adapt the list to fit your company's efforts*)

A. Outreach efforts to obtain sources:

___ Contacting minority and small business trade associations

___ Contacting business development organizations

___ Requesting sources from the SBA's Small Business Search and/or the SAM.gov database

___ Attending small a

nd minority business trade fairs and procurement conferences

B. Internal efforts to guide and encourage purchasing personnel:

___ Presenting workshops, seminars, and training programs

___ Establishing, maintaining, and using small, HUBZone small, small disadvantaged, women-owned small, veteran-owned small, and service-disabled veteran-owned small business source lists, guides, and other data for soliciting subcontracts

___ Monitoring activities to evaluate compliance with the subcontracting plan

C. Other efforts: (*Please describe below*.)

____

____

____

IX. <u>ASSURANCES OF CLAUSE INCLUSION AND FLOW DOWN:</u>

FAR clause 52.219-9(d)(9) (NOV 2025) requires assurances that the Offeror will include the clause at 52.219-8, Utilization of Small Business Concerns (NOV 2025), in all subcontracts that offer further subcontracting opportunities, and that the Offeror will require all subcontractors (except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g. ANCs, see 13 CFR 125.3(b)(2)) that receive subcontracts in excess of the subcontracting plan threshold specified in FAR 19.109(a) (GSA Class Deviation RFO-2025-19) on the date of subcontract award, with further subcontracting possibilities to adopt a subcontracting plan that complies with the requirements of this clause.

[**<u>Company Name</u>**] agrees to include the FAR Clause 52.219-8, "Utilization of Small Business Concerns" (NOV 2025) in all subcontracts that offer further subcontracting opportunities, and will require all subcontractors (*except small business concerns, including entities that are treated as small business concerns by statute for certain purposes (e.g. ANCs, see 13 CFR 125.3(b)(2)*) that receive subcontracts in excess of the subcontracting plan threshold specified in FAR 19.109(a) (GSA Class Deviation RFO-2025-19) on the date of subcontract award to adopt a subcontracting plan that complies with the requirements of the clause at 52.219-9, Small Business Subcontracting Plan (NOV 2025).

X. <u>REPORTING AND COOPERATION:</u> FAR clause 52.219-9(d)(10) (NOV 2025) requires assurances that the offeror will do the following:

[**<u>Company Name</u>**] agrees to:

- Cooperate in any studies or surveys as may be required
- Submit periodic reports so that the Government can determine the extent of compliance by the offeror with the subcontracting plan
- Report subcontracting data for each order when reporting subcontracting achievements under orders placed by federal agencies using multiple agency task/delivery order contracts, such as MAS, GWACs, OASIS
- Submit the Individual Subcontract Report (ISR) and/or the Summary Subcontract Report (SSR), on time in accordance with paragraph (l) of FAR clause 52.219-9 (NOV 2025) or as provided in agency regulations, using the <u>eSRS</u> following the instructions in eSRS.
- For individual plans there are two (2) types of subcontracting reports:

- Individual Subcontract Reports (ISRs) – cumulative, contract-specific reports
- Summary Subcontract Reports (SSRs) – annual agency-specific report

Three (3) reports are required each year:

Calendar Period	Report Due	Due by	*with email address for*:
10/01--03/31	ISR	4/30	Contracting Officer
04/01--09/30	ISR	10/30	Contracting Officer
10/01--09/30	SSR	10/30	Contracting Officer

- Submit a revised report within 30 days of receiving notice of rejection by the contracting officer
- Ensure that subcontractors with subcontracting plans agree to submit the ISR and/or the SSR using the eSRS:
  (A) Provide prime contract number, the prime's UEI, and the e-mail address of the Offeror's official responsible for acknowledging receipt of or rejecting the ISRs, to all first-tier subcontractors with subcontracting plans so they can enter this information into the eSRS when submitting their ISRs.
  (B) Require that each subcontractor with a subcontracting plan provide the prime contract number, its own UEI, and the e-mail address of the subcontractor's official responsible for acknowledging receipt of, or rejecting the ISRs, to its subcontractors with subcontracting plans.

The Final ISR is due within 30 days of contract completion.

Assistance in report preparation can be found in the instructional pages, in guidance documents on the eSRS home page, and/or from your local SBA Commercial Market Representative.

XI. RECORDKEEPING: FAR clause 52.219-9(d)(11) (NOV 2025) requires a description of the types of records that will be maintained concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of the efforts to locate SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns and to award subcontracts to them.

[**Company Name**] will maintain records concerning procedures that have been adopted to comply with the requirements and goals in the plan, including establishing source lists; and a description of efforts to locate SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns and award subcontracts to them. The records shall include at least the following (on a plant-wide or company-wide basis, unless otherwise indicated):

1. Source lists (*e.g.,* SAM), guides, and other data that identify SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), and WOSB concerns.

2. Organizations contacted in an attempt to locate sources that are SB (including ANCs and Indian tribes), VOSB, SDVOSB, HUBZone, SDB (including ANCs and Indian tribes), or WOSB concerns.

3. Records on each subcontract solicitation resulting in an award of more than the simplified acquisition threshold, as defined in FAR 2.101 (GSA Class Deviation RFO-2025-2), as of the date of the subcontract award, indicating whether or not the following business concerns were solicited, and if not, why not:

    (A) Small businesses
    (B) Veteran-owned small businesses
    (C) Service-disabled veteran-owned small businesses
    (D) HUBZone small businesses
    (E) Small disadvantaged businesses
    (F) Women-owned small businesses

  If applicable, the reason award was not made to a small business concern.

4. Records of any outreach efforts to contact:

    (A) Trade associations
    (B) Business development organizations[35]
    (C) Conferences and trade fairs to locate small, HUBZone small, small disadvantaged, service-disabled veteran-owned, and women-owned small business sources
    (D) Veterans service organizations

5. Records of internal guidance and encouragement provided to buyers through

    (A) Workshops, seminars, training, etc.
    (B) Monitoring performance to evaluate compliance with the program's requirements

6. On a contract-by-contract basis, records to support award data submitted by the Offeror to the Government, including the name, address, and business size of each subcontractor.

7. Other records supporting compliance with the subcontracting plan: (*Please describe below*.)

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[35] Such as APEX Accelerators (formerly known as Procurement Center Technical Assistance Centers: aptac-us.org)

XII. ADDITIONAL ASSURANCES:

- [**Company Name**] will make a good faith effort to acquire articles, equipment, supplies, services, or materials, or obtain the performance of construction work from the small business concerns that it used in preparing the bid or proposal, in the same or greater scope, amount, and quality used in preparing and submitting the bid or proposal.

- [**Company Name**] will provide the Contracting Officer with a written explanation if the Contractor fails to acquire articles, equipment, supplies, services, or materials or obtain the performance of construction work as described in (d)(12) of FAR clause 52.219-9 (NOV 2025). This written explanation must be submitted to the Contracting Officer within 30 days of contract completion.

- [**Company Name**] will not prohibit a subcontractor from discussing with the Contracting Officer any material matter pertaining to the payment to or utilization of a subcontractor; and

- [**Company Name**] assures that the Contractor will pay its small business subcontractors on time and in accordance with the terms and conditions of the subcontract, and notify the contracting officer if [**Company Name**] pays a reduced or an untimely payment to a small business subcontractor (see FAR clause 52.242-5 (NOV 2025)).

XIII. COMMITMENT TO MAKE A "GOOD FAITH EFFORT"

[**Company Name**] shall make a good faith effort to achieve the small business goals described in this subcontracting plan by taking the efforts listed below in addition to the efforts listed under Section IV, Section VIII and Section IX described in this plan: **[List additional efforts]**.

XIV. STATUTORY REQUIREMENTS

The above requirements will be negotiated with the Contracting Officer prior to approval. The Contracting Officer must ensure that an acceptable plan is incorporated into and made a material part of the contract. Failure to submit and negotiate the subcontracting plan shall make the Offeror ineligible for award of a contract.

As stated in 15 U.S.C. 637(d)(9), any contractor or subcontractor failing to comply in good faith with the requirements of the subcontracting plan is in material breach of its contract. Further, 15 U.S.C. 637(d)(4)(F) directs that a contractor's failure to make a good faith effort to comply with the requirements of the subcontracting plan shall result in the imposition of liquidated damage.

XV. SIGNATURE REQUIRED: *Plan must be **signed** and **dated** by a company official.*

This subcontracting plan was SUBMITTED by:

Signature: ____

Typed Name: ____

Company Title: ____

Date Signed: ____

Government Contracting Officer APPROVAL:

Signature: ____

Printed Name: ____

Agency: ____

Date Signed: ____

Attachment 6

52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services.

As prescribed in 12.301(b)(2), insert the following provision:

OFFEROR REPRESENTATIONS AND CERTIFICATIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (OCT 2025)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through https://www.sam.gov. If the Offeror has not completed the annual representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions*. As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

(1) PSC 5510, Lumber and Related Basic Wood Materials;

(2) Product or Service Group (PSG) 87, Agricultural Supplies;

(3) PSG 88, Live Animals;

(4) PSG 89, Subsistence;

(5) PSC 9410, Crude Grades of Plant Materials;

(6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;

(7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;

(8) PSC 9610, Ores;

(9) PSC 9620, Minerals, Natural and Synthetic; and

(10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended."Sensitive technology"—

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3)of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in [13 CFR part 121] and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at [38 U.S.C. 101(2)]) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through http://www.sam.gov. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs __.

[*Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.*

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It □ is, □ is not a small business concern; or

(ii) It □ is, □ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ____________.]

(2) *Veteran-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents as part of its offer that it □ is, □ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it □ is, □ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program*. The offeror represents that it □ is, □ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ____________.]

(5) *Small disadvantaged business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it □ is, □ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents that it □ is, □ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ____________.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it □ is, □ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ____________.]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern*). [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents that it □ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns*. If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:____________

(11) *HUBZone small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision*.] The offeror represents, as part of its offer, that–

(i) It □ is, □ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It □ is, □ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* ______.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246- (1) Previous contracts and compliance. The offeror represents that-

(i) It □ has, □ has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It □ has, □ has not filed all required compliance reports.

(2) *Affirmative Action Compliance*. The offeror represents that-

(i) It □ has developed and has on file, □ has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It □ has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352)*. (Applies only if the contract is expected to exceed $200,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate*. (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.)

(1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

______________	_________________	_________________
______________	_________________	_________________
______________	_________________	_________________

[*List as necessary*]

(3) Domestic end products containing a critical component:

Line Item No. ___

[*List as necessary*]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g) (1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

________________	___________________
________________	___________________
________________	___________________

[*List as necessary*]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

________________ ________________ ________________

________________ ________________ ________________

________________ ________________ ________________

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. ___

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II*. If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

____

____

____

[*List as necessary*]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III*. If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

____________________	____________________
____________________	____________________
____________________	____________________

[*List as necessary*]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

____________________	____________________
____________________	____________________
____________________	____________________

[*List as necessary*]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689)*. (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals–

(1) □ Are, □ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) □ Have, □ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) □ Are, □ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) □ Have, □ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined*. The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment*. A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples*. (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126). [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]*

(1) *Listed end products.*

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) □ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) □ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [*The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.*]

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror □ does □ does not certify that–

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003-4(d)(1). The offeror □ does □ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies–

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN) (* 26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐TIN: _______________________________.

☐TIN has been applied for.

☐TIN is not required because:

☐Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐Offeror is an agency or instrumentality of a foreign government;

☐Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐Sole proprietorship;

☐Partnership;

☐Corporate entity (not tax-exempt);

☐Corporate entity (tax-exempt);

☐Government entity (Federal, State, or local);

☐Foreign government;

☐International organization per 26 CFR1.6049-4;

☐Other ________________________________.

(5) *Common parent*.

☐Offeror is not owned or controlled by a common parent;

☐Name and TIN of common parent:

Name ________________________________.

TIN ________________________________.

(m) *Restricted business operations in Sudan*. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) Prohibition on Contracting with Inverted Domestic Corporations. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that–

(i) It □ is, □ is not an inverted domestic corporation; and

(ii) It □ is, □ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran. (1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications*. Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror*. (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it □ has or □ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____________________.

Immediate owner legal name: _____________________.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: □ Yes or □ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: __________________.

Highest-level owner legal name: ___________________.

(*Do not use a "doing business as" name*)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that–

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that–

(i) It is □ is not □ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is □ is not □ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it □ is or □ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: (or mark "Unknown").

Predecessor legal name:_____.

(*Do not use a "doing business as" name*).

(s) [Reserved].

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals*. Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received $7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than $7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible website the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) □ does, □ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible website a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible website includes the Offeror's own website or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked "does" in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible website(s) where greenhouse gas emissions and/or reduction goals are reported:_____________.

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation*. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements

prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (https://www.sam.gov) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that–

(i) It □ does, □ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it □ does, □ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

ATTACHMENT 7: VERIFICATION FROM RENEWABLE POWER / RENEWABLE ENERGY SUPPLIER

I, (print name and title)____, verify, on behalf of

(name of renewable power/REC provider)______________________________________, that

1) all the renewable power/RECs sold under this GSA Contract No. ____________________were generated by eligible renewable energy generators as defined by this Contract;
2) all the renewable attributes, including any emissions reduction credits or emissions allowances which are specifically owned by or to which the renewable power/REC generator is otherwise entitled to convey, represented by the renewable power/RECs purchased under this GSA Contract No. ______________were transferred to the Government;
3) the renewable attributes represented by the renewable power/RECs were not sold, marketed or otherwise claimed by a third party; and
4) the renewable attributes comply with the vintage requirements contained in Section A.12 of the contract.

Name of renewable power/REC product:

- ________________________
- ________________________
- ________________________

I further verified that the renewable power/RECs claimed for the product were sold once and only once, and that the electrical energy that was generated with the renewable power/RECs claimed was not sold, marketed or otherwise represented as renewable energy and was not used to meet any federal, state or local renewable energy requirement, renewable energy procurement, renewable portfolio standard, or other renewable energy mandate. I have authority to submit this report on the company's behalf.

____ __________________________
Signature Date
Renewable Power/REC Provider

ATTACHMENT 8. RENEWABLE POWER / RENEWABLE ENERGY GENERATOR REGISTRATION FORM

Facility Information

Name of Facility:______

Address of Facility:____

Facility ID Number[1]:____EIA or QF? (circle one)

Contact Person:

____

Title:____

Telephone:____ Fax:__

Fuel Type	Capacity* (MW)	MWh/RECs Sold	Date Facility First Operational	[redacted]	Period of Delivery (Q#/yy or mm/yy)**
Geothermal					
Wind					
Solar electric					
Hydroelectric Ocean Waste-to-Energy					

* For facilities which have added new renewable capacity, please indicate the amount and operational date of the new capacity and the existing capacity.
** List as separate line items MWh for each month or quarter.

If multiple facilities are being used for this contract, Contractors are required to provide a completed copy of this form for each facility.

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[1] Please enter Energy Information Administration (EIA) identification number for the generating facility. If the facility does not have an EIA number, please enter the utility-assigned Qualifying Facility (QF) identification number.

ATTACHMENT 9 RENEWABLE POWER / RENEWABLE ENERGY VERIFICATION

The (indicate) ___ renewable megawatt hours/ ___ renewable attributes listed above were sold exclusively to (name of renewable power/REC provider) ____. Further, 1) all the renewable attributes, including any emissions reduction credits or emissions allowances which are specifically owned by or to which the renewable power/REC generator is otherwise entitled to convey, represented by the renewable electricity generation listed below were transferred to the renewable power/REC provider above, 2) to the best of my knowledge, the renewable attributes were not sold, marketed or otherwise claimed by a third party; 3) the renewable attributes were sold once and only once; 4) the electrical energy that was generated with the attributes was not used on-site for generation; and 5) the electrical energy that was generated with the attributes was not separately sold, marketed or otherwise represented as renewable energy and was not used to meet any federal, state or local renewable energy requirement, renewable energy procurement, renewable portfolio standard, or other renewable energy mandate.

The facilities that generated all of the (indicate) ___ renewable kilowatt hours/ ___ renewable attributes sold to (name of renewable power/REC supplier) are listed above by fuel type.
I have authority to submit this report on the company's behalf.
Signature:____Date:____________________________

This form is used by the Government to verify the accuracy of claims made by retail marketers.

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ATTACHMENT 10: RENEWABLE POWER / RENEWABLE ENERGY CERTIFICATE NOTIFICATION

(Contractor Name) verifies that Renewable Power/Renewable Energy Certificates in the amounts described below, associated with power generation from the Renewable Resource(s) listed below, have been provided to the Government in accordance with the terms of Contract No.______________ for the period (Insert Dates). The Renewable Power/Renewable Energy Certificate(s) provided to the Government include emissions, and other environmental characteristics associated with renewable resources. The Renewable Energy Certificate(s) do not include energy, capacity, or other attributes of electrical power. (Contractor Name) represents that the environmental attributes, including any attendant emission credits which are specifically owned by or to which the renewable power/REC generator is otherwise entitled to convey, that are the subject of this Notification have not been sold, reserved, or conveyed to any party other than Government and that the electric power generated in association with this/these Renewable Power/Renewable Energy Certificate(s) has not been represented to retain or possess such attributes. The Renewable Power/Renewable Energy Certificate(s) that are the subject of this Notification are based upon the generation of electricity from (Insert type of Renewable Resource(s)) at (Insert Source Facility Location(s)).The total amount of Renewable Power/Renewable Energy Certificates covered by this Notification is: (Insert Quantity conveyed in MWhs).

Insert company name, representative name, signature (typed/printed) and date

ATTACHMENT 11: RENEWABLE POWER / RENEWABLE ENERGY CALCULATIONS

(Contractor Name) verifies the following calculations represent the annual kWh usage and RECs retired by account to the best of Contractor's records. Note that while the below template may be used if the Contractor is serving five or fewer accounts under a specific contract, Contractors may elect to provide this information in an excel spreadsheet or CSV file. If the Contractor elects to provide this information in an excel spreadsheet or CSV file, they must request a template from the GSA Contracting Officer specified in Section C of this solicitation and that template must be submitted back to GSA with the calculations.

The number of RECs retired by account in the bottom table must match the kWhs by account multiplied by the renewable percentage by account. The sum of the number of RECs specified in the bottom table must match the number of RECs specified in Attachments 8-10.

							kWhs												
Utility Account Number	Utility	Service Address Street	Service Address City	Renewable Percentage	Contract Start Date	Contract End Date	Oct	Nov	Dec	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Total kWhs

							RECs RETIRED												
Utility Account Number	Utility	Service Address Street	Service Address City	Renewable Percentage	Contract Start Date	Contract End Date	Oct	Nov	Dec	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug	Sep	Total RECs

ATTACHMENT 12: PRE-PROPOSAL CALL SCHEDULE

Per Section D.2 of the solicitation, "GSA will hold a pre-proposal call on January 28th, 2026 to provide offerors the opportunity to ask questions related to the solicitation, pricing products and terms and conditions. GSA will also hold a series of pre-proposal calls as indicated in Attachment 12: Pre-Proposal Call Schedule, to provide offerors the opportunity to ask questions related to the final Exhibit 1 files."

The pre-proposal call schedule for each of the markets listed in the GSA solicitation is listed below: All calls will be held at 1:00 PM EST on the day specified below.

As a reminder, per Attachment 13 - Preliminary Exhibit 1, The final Exhibit 1 files will include final auction dates, EnelX RFP#s, auction end times for each RFP, the GSA Pricing Product requested, the term or terms requested for each pricing group and updated account information including monthly usage data, whether interval data is available for each account from the utility, capacity and transmission values (if applicable), etc."

GSA will hold a pre-proposal call at 11:00 AM EST on January 28th, 2026 to provide offerors the opportunity to ask questions related to the solicitation, pricing products and terms and conditions. GSA will also hold a series of pre-proposal calls as indicated below, to provide offerors the opportunity to ask questions related to the final Exhibit 1 files released for each ISO/RTO. The call in number for the January 28th, 2026 call is 1 (402) 751 0105 pin 546722965. Suppliers may also join the ZoomGov pre-proposal call through the following link

https://gsa.zoomgov.com/j/1611142507?pwd=HUb0BGWhpWyktL1CHqaG6y5QywTBdk.1
Meeting ID: 161 114 2507 Passcode: 519446.

ISO/RTO	Projected Auction Date from Attachment 13: Preliminary Exhibit 1	Projected Final Exhibit 1 Release Date	Date of Pre-Proposal Call	Questions Due Date on Final Exhibit 1
PJM	Wednesday, March 11th , 2026	Tuesday, February 10th, 2026	Wednesday, February 18th, 2026	Wednesday, February 25th, 2026
NYISO	Wednesday, May 13th, 2026	Tuesday, April 14th, 2026	Wednesday April 22nd, 2026	Wednesday, April 29th, 2026
MISO	Wednesday, September 9th, 2026	Tuesday, August 11th, 2026	Wednesday August 19th, 2026	Wednesday, August 26th, 2026

Pre-Proposal Call - PJM

Mark West, GSA is inviting you to a scheduled ZoomGov meeting.

Topic: Pre-Proposal Call - PJM FY 26 Streamline Electricity Solicitation
Time: Feb 18, 2026 01:00 PM Eastern Time (US and Canada)
Join ZoomGov Meeting
https://gsa.zoomgov.com/j/1610384642?pwd=C7jNgXaw5wuN5nbmevnxvL1bKV5PFW.1

Meeting ID: 161 038 4642
Passcode: 107636

One tap mobile
+16692545252,,1610384642#,,,,*107636# US (San Jose)
+16468287666,,1610384642#,,,,*107636# US (New York)

Dial by your location
• +1 669 254 5252 US (San Jose)
• +1 646 828 7666 US (New York)
• +1 646 964 1167 US (US Spanish Line)
• +1 551 285 1373 US (New Jersey)
• +1 669 216 1590 US (San Jose)
• +1 415 449 4000 US (US Spanish Line)

Meeting ID: 161 038 4642
Passcode: 107636

Find your local number: https://gsa.zoomgov.com/u/acwEkLNfNo

Join by SIP
• 1610384642@sip.zoomgov.com

Join by H.323
• 166.108.98.42 (US West)
• 166.108.66.42 (US East)

Meeting ID: 161 038 4642
Passcode: 107636

Pre-Proposal Call - NYISO

Mark West, GSA is inviting you to a scheduled ZoomGov meeting.

Topic: Pre-Proposal Call - NYISO FY 26 Streamline Electricity Solicitation
Time: Apr 22, 2026 01:00 PM Eastern Time (US and Canada)
Join ZoomGov Meeting
https://gsa.zoomgov.com/j/1613907432?pwd=YFPQaHgvSTXakqp8V8VIhbP6jjrVJ8.1

Meeting ID: 161 390 7432
Passcode: 902365

One tap mobile
+16692545252,,1613907432#,,,,*902365# US (San Jose)
+16468287666,,1613907432#,,,,*902365# US (New York)

Dial by your location
• +1 669 254 5252 US (San Jose)
• +1 646 828 7666 US (New York)
• +1 646 964 1167 US (US Spanish Line)
• +1 415 449 4000 US (US Spanish Line)
• +1 551 285 1373 US (New Jersey)
• +1 669 216 1590 US (San Jose)

Meeting ID: 161 390 7432
Passcode: 902365

Find your local number: https://gsa.zoomgov.com/u/aiVbuEyuR

Join by SIP
• 1613907432@sip.zoomgov.com

Join by H.323
• 166.108.98.42 (US West)
• 166.108.66.42 (US East)

Meeting ID: 161 390 7432
Passcode: 902365

Pre-Proposal Call - MISO

Mark West, GSA is inviting you to a scheduled ZoomGov meeting.

Topic: Pre-Proposal Call - MISO FY 26 Streamline Electricity Solicitation
Time: Aug 19, 2026 01:00 PM Eastern Time (US and Canada)
Join ZoomGov Meeting
https://gsa.zoomgov.com/j/1603983556?pwd=62nH8cGuF79U6STjALNxFwSapV47Gx.1

Meeting ID: 160 398 3556
Passcode: 250654

One tap mobile
+16692545252,,1603983556#,,,,*250654# US (San Jose)
+16468287666,,1603983556#,,,,*250654# US (New York)

Dial by your location
• +1 669 254 5252 US (San Jose)
• +1 646 828 7666 US (New York)
• +1 646 964 1167 US (US Spanish Line)
• +1 669 216 1590 US (San Jose)
• +1 415 449 4000 US (US Spanish Line)
• +1 551 285 1373 US (New Jersey)

Meeting ID: 160 398 3556
Passcode: 250654

Find your local number: https://gsa.zoomgov.com/u/abmNEAVDcS

Join by SIP
• 1603983556@sip.zoomgov.com

Join by H.323
• 166.108.98.42 (US West)
• 166.108.66.42 (US East)

Meeting ID: 160 398 3556
Passcode: 250654

ATTACHMENT 14: TECHNICAL REQUIREMENTS SPECIFIC TO PJM (DISTRICT OF COLUMBIA, DELAWARE, PENNSYLVANIA, NEW JERSEY, MARYLAND, OHIO) RTO

Offerors requesting to be determined technically acceptable in PJM must meet the following technical requirements. For the purposes of this section, the experience of the parent or affiliate may be used to satisfy a portion of the requirements.

SECTION A: PRICING PRODUCT DESCRIPTION

See Attachment 3: Price Component Confirmation Tables

SECTION B: FAR CLAUSES

(I) **TERMINATION FOR THE GOVERNMENT'S CONVENIENCE**
(1) In the event of termination, the Contractor shall cease deliveries hereunder with respect to such terminated contract quantities on the first allowable date subsequent to such termination according to the applicable tariff provisions of the local distribution company. For the purposes of this clause, the Contractor will be paid for electricity delivered up to termination and from the termination date until deliveries cease in accordance with tariff provisions of the local distribution company.
(2) In addition to the value of delivered electricity, the termination value shall be calculated using the following formula:
(i) Firm Fixed Price:
A = (B - C)*D
Where—
A = Termination value.
B = Award price for contract.
C = Forward market price, defined herein.
D = Contract quantity for remaining contract term (based on Exhibit 1).
(A) If the termination value on the date of termination is negative, the Contractor shall not be entitled to any payment.
(C) The forward market price shall be defined as the average of around-the-clock (ATC) energy prices at the applicable PJM Interconnection (PJM) Zone where the account(s) is located for a term equal to the remaining term of the contract plus any energy supply items that have been purchased in the forward market to supply the account. The Contractor shall base the proposed forward market price in a commercially reasonable manner.
(D) In the event that the Government elects to terminate on a date other than the end of a month, the estimated remaining contract quantity will be calculated by prorating the partial month of service.

NOTE: The termination value formula above shall only apply to electricity purchased on a fixed price basis.

552.216-77 Economic Price Adjustment – Electric Supply (March 2020)
In addition to the fixed price for the electric energy required for the accounts included in the contract pricing groups *[see Exhibit 1]*, each month, the Contractor shall charge and the Government shall pay the Contractor for the accounts included in the contract pricing groups *[see Exhibit 1]* an additional amount as an economic price adjustment equal to the sum of the following components:

(a) Capacity. The Government shall pay the Contractor a capacity charge in accordance with the following formula:

Capacity Formula = PLC [LDU Defined Capacity Peak Load Contribution] * FPR [Forecast Pool Requirement] * FZSF [Final Zonal RPM Scaling Factor] * Days [in applicable billing cycle] * RPM Final Zonal Net Load Capacity Price * DZSF [Daily Zonal Scaling Factor]

Capacity Cost – is defined as the required amount of Unforced Capacity (UCAP) for the Government as determined by the LDU applying the then current PJM guidelines. The terms Peak Load Contribution (PLC), Final Zonal RPM Scaling Factor, and Forecast Pool Requirement are defined by PJM (see https://www.pjm.com/Glossary). The RPM Final Zonal Net Load Capacity Price (expressed in $/MW-day) is determined by PJM, and may include a capacity performance product as determined by PJM and approved by FERC. RPM Final Zonal Net Load Capacity Prices are typically not established until shortly before (or on the 1st day) new Capacity rates become effective. The most up to date RPM Final Zonal Net Load Capacity Prices and Daily Zonal Scaling Factor can be found on PJM's website at: https://www.pjm.com/markets-and-operations/rpm.aspx .

PJM adjusts UCAP prices and volumes every June 1st with the price reflecting the current PJM capacity auction price for the respective PJM zone and PJM year. The PJM UCAP prices can be found on PJM's website at: https://www.pjm.com/markets-and-operations/rpm.aspx. The Government, at its option, may seek to fix capacity prices for some or all of the contract term via bilateral contract modification.

(b) Transmission. The Government shall pay the Contractor a Transmission Charge in accordance with the following formula:

Monthly NITS Costs = NSPL [Network Service Peak Load or NITS tag (MW)] * (NITS Rate + TEAC Rate [$/MW-day]) * NSPL Daily Zonal Scaling Factor * No. of days in billing cycle month

NITS Cost - is defined as the currently effective network integrated transmission service (NITS) rate as specified by the currently effective PJM Open Access Transmission Tariff (OATT) page for the applicable delivery zone (reference PJM Transmission Tariff Attachment H9 Annual Transmission Rates). The price for NITS may change from time to time in order to pass through changes in the PJM OATT rate. The final rates for the purposes of this calculation will be those published on the PJM website (found at: https://www.pjm.com/markets-and-operations/billing-settlements-and-credit) reflecting the current LDU transmission rates. Pursuant to section (c) of this clause, see Attachment 3 - Price Component Confirmation Tables for the cost components for Regional Transmission Expansion Planning (RTEP), Financial Transmission Right (FTR), Transmission Enhancement (TEC), and Transmission Reallocation Costs (TEAC) which are set by PJM.

(c) Other Market Charges and Credits. The Government shall pay and/or be credited back the market-based charges/credits identified in Attachment 3: Price Component Confirmation Tables as appropriate for the applicable contract and utility/RTO zone.

(1) Reliability Must Run (RMR) – Any RMR charges shall be with no markup to the Government.

(2) Federal Energy Regulatory Commission (FERC) Order 745 and FERC 494 / EL05-121-009 costs, if any, shall be with no mark-up to the Government.

(3) Auction Revenue Rights (ARRs) – Any ARRs associated with the account loads shall be credited back to the Government, based on the Government's share of the Contractor's overall load. Both the transmission charge and any credits to the Government shall be shown as separate line items on the monthly invoices. The Contractor shall apply ARR credits within 60 days of receipt by the Contractor.

(4) Offshore Wind RECs (ORECs) costs, if any, shall be with no mark-up to the Government.

(d) Changes. The Contractor shall:
(1) Notify the Contracting Officer in writing as soon as reasonably possible of a change to either of the formulas in paragraphs (a) or (b) of this clause is required during the performance of the contract. The notification shall include the effective date of the change, the applicable formula, and reason for the change.
(2) On the anniversary date of a multiple year contract, or at the beginning of a renewal option period, to review and represent that the formulas in paragraphs (a) and (b) of this clause, are current, accurate, and complete.
(3) If the estimated value of the contract is increased or decreased as a result of paragraphs (d)(1) or (d)(2) of this clause, the Contractor shall provide a written request to the Contracting Officer, and the contract shall be modified accordingly.

SECTION C: EVIDENCE OF TECHNICAL ACCEPTABILITY

1. Provide evidence clearly demonstrating that the Offeror is a currently approved electricity supplier in PJM and is licensed and approved by PJM to provide retail electricity supply in PJM for the account types specified. A printout showing the Offeror is a currently approved retail electricity supplier by PJM or a letter from PJM specifying the Offeror is currently approved to deliver retail electricity into the PJM system is required.

2. Provide evidence that the offeror has firm transmission service agreements and/or network transmission agreements in the Offeror's name with PJM for the interconnection points between the LDU system and PJM to effect delivery to the Delivery Points indicated in Exhibit I.

3. Provide evidence that the Offeror either (a) possesses experience providing firm supply and firm transmission of electricity to at least ten (10) retail electric customers with peak annual demands in excess of 1,000 KW within PJM during the past 12 months; or (b) possesses experience providing firm supply and firm transmission of electricity to one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW within PJM during the past 12 months. Offerors shall provide the contact persons and telephone numbers for at least one (1) of the ten (10) electric customers provided for this item or the contact person and telephone number for the one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW.

SECTION D: NOTES AND INSTRUCTIONS TO OFFERORS

N/A

ATTACHMENT 15: TECHNICAL REQUIREMENTS SPECIFIC TO MIDCONTINENT INDEPENDENT SYSTEM OPERATOR (MISO)

Offerors requesting to be determined technically acceptable in MISO must meet the following technical requirements. For the purposes of this section, the experience of the parent or affiliate may be used to satisfy a portion of the requirements.

SECTION A: PRICING PRODUCT DESCRIPTION

See Attachment 3: Price Component Confirmation Tables

SECTION B:FAR CLAUSES

(l) **TERMINATION FOR THE GOVERNMENT'S CONVENIENCE**
(1) In the event of termination, the Contractor shall cease deliveries hereunder with respect to such terminated contract quantities on the first allowable date subsequent to such termination according to the applicable tariff provisions of the local distribution company. For the purposes of this clause, the Contractor will be paid for electricity delivered up to termination and from the termination date until deliveries cease in accordance with tariff provisions of the local distribution company.
(2) In addition to the value of delivered electricity, the termination value shall be calculated using the following formula:
(i) Firm Fixed Price:
A = (B - C)*D
Where—
A = Termination value.
B = Award price for contract.
C = Forward market price, defined herein.
D = Contract quantity for remaining contract term (based on Exhibit 1).
(A) If the termination value on the date of termination is negative, the Contractor shall not be entitled to any payment.
(C) The forward market price shall be defined as the average of around-the-clock (ATC) energy prices at the applicable Midcontinent Independent System Operator (MISO) Zone where the account(s) is located for a term equal to the remaining term of the contract plus any energy supply items that have been purchased in the forward market to supply the account. The Contractor shall base the proposed forward market price in a commercially reasonable manner.
(D) In the event that the Government elects to terminate on a date other than the end of a month, the estimated remaining contract quantity will be calculated by prorating the partial month of service.

NOTE: The termination value formula above shall only apply to electricity purchased on a fixed price basis.

(n) **TITLE**. Title to the electricity supplied by the Contractor under this contract shall pass to the Government upon delivery at the Delivery Point. The Contractor warrants that the electricity delivered to the Government under this contract will be free and clear of any liens, claims and encumbrances arising prior to delivery at the Delivery Point.

(o) **WARRANTY**. The Contractor warrants and implies that the electricity delivered hereunder conforms to the tariff of the transmitting and/or distributing utility at the Delivery Point.

SECTION C: EVIDENCE OF TECHNICAL ACCEPTABILITY

1. For Federal facilities located within the state of Illinois, the invoice shall be consistent with the rules of the Illinois Commerce Commission (ICC) regarding issuance and format of bills.

2. Provide evidence clearly demonstrating that the Offeror is a currently approved electricity supplier in MISO and is licensed and approved by MISO to provide retail electricity supply in MISO for the account types specified. A printout showing the Offeror is a currently approved retail electricity supplier by MISO or a letter from MISO specifying the Offeror is currently approved to deliver retail electricity into the MISO system is required.

3. Provide evidence that the offeror has firm transmission service agreements and/or network transmission agreements in the Offeror's name with MISO for the interconnection points between the LDU system and MISO to effect delivery to the Delivery Points indicated in Exhibit I.

4. Provide evidence that the Offeror either (a) possesses experience providing firm supply and firm transmission of electricity to at least ten (10) retail electric customers with peak annual demands in excess of 1,000 KW within MISO during the past 12 months; or (b) possesses experience providing firm supply and firm transmission of electricity to one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW within MISO during the past 12 months. Offerors shall provide the contact persons and telephone numbers for at least one (1) of the ten (10) electric customers provided for this item or the contact person and telephone number for the one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW.

SECTION D: NOTES AND INSTRUCTIONS TO OFFERORS

N/A

ATTACHMENT 16: TECHNICAL REQUIREMENTS SPECIFIC TO NEW YORK INDEPENDENT SYSTEM OPERATOR (NYISO) RTO

Offerors requesting to be determined technically acceptable in NYISO must meet the following technical requirements. For the purposes of this section, the experience of the parent or affiliate may be used to satisfy a portion of the requirements.

SECTION A: PRICING PRODUCT DESCRIPTION

See Attachment 3: Price Component Confirmation Tables

SECTION B:FAR CLAUSES

(I) **TERMINATION FOR THE GOVERNMENT'S CONVENIENCE**
(1) In the event of termination, the Contractor shall cease deliveries hereunder with respect to such terminated contract quantities on the first allowable date subsequent to such termination according to the applicable tariff provisions of the local distribution company. For the purposes of this clause, the Contractor will be paid for electricity delivered up to termination and from the termination date until deliveries cease in accordance with tariff provisions of the local distribution company.
(2) In addition to the value of delivered electricity, the termination value shall be calculated using the following formula:
(i) Firm Fixed Price:
A = (B - C)*D
Where—
A = Termination value.
B = Award price for contract.
C = Forward market price, defined herein.
D = Contract quantity for remaining contract term (based on Exhibit 1).
(A) If the termination value on the date of termination is negative, the Contractor shall not be entitled to any payment.
(C) The forward market price shall be defined as the average of around-the-clock (ATC) energy prices at the applicable NYISO Interconnection (NYISO) Zone where the account(s) is located for a term equal to the remaining term of the contract plus any energy supply items that have been purchased in the forward market to supply the account. The Contractor shall base the proposed forward market price in a commercially reasonable manner.
(D) In the event that the Government elects to terminate on a date other than the end of a month, the estimated remaining contract quantity will be calculated by prorating the partial month of service.

NOTE: The termination value formula above shall only apply to electricity purchased on a fixed price basis.

552.216-77 Economic Price Adjustment – Electric Supply (March 2020)

In addition to the fixed price for the electric energy required for the accounts included in the contract pricing groups *[see Exhibit 1]*, each month, the Contractor shall charge and the Government shall pay the Contractor for the accounts included in the contract pricing groups *[see Exhibit 1]* an additional amount as an economic price adjustment equal to the sum of the following components:

(a) RESERVED

(b) RESERVED

(c) Other Market Charges and Credits. All of these other market charges and credits shall be passed through with no markup to the Government. The Government shall pay and/or be credited back the market-based charges/credits listed as "Economic Price Adjustment" in Attachment 3 – Price Component Confirmation Tables as appropriate for the applicable contract and NYISO zone. The Contracting Officer shall identify which Other Market Charges and Credits will apply in the contract pricing section.

(1) New York Renewable Portfolio Standards (RPS), Renewable Energy Standards (RES), Clean Energy Standards (CES) and Zero Emissions Credits (ZEC) compliance costs. Any and all associated charges shall be with no markup to the Government.

(2) Public Policy Transmission (PPT) Costs. Any and all associated charges shall be with no markup to the Government.

(3) Transmission Owner Transmission Solutions (TOTS) costs. Any and all associated charges shall be with no markup to the Government.

(4) NYPA Transmission Adjustment Charges (NTAC) costs. Any and all associated charges shall be with no markup to the Government.

(d) Changes. The Contractor shall:

(1) Notify the Contracting Officer in writing as soon as reasonably possible of a change to either of the items listed in (c) of this clause is required during the performance of the contract. The notification shall include the effective date of the change, the applicable change, and reason for the change.

(d) Changes. The Contractor shall:
(1) Notify the Contracting Officer in writing as soon as reasonably possible of a change to either of the formulas in paragraphs (a) or (b) of this clause is required during the performance of the contract. The notification shall include the effective date of the change, the applicable formula, and reason for the change.
(2) On the anniversary date of a multiple year contract, or at the beginning of a renewal option period, to review and represent that the formulas in paragraphs (a) and (b) of this clause, are current, accurate, and complete.
(3) If the estimated value of the contract is increased or decreased as a result of paragraphs (d)(1) or (d)(2) of this clause, the Contractor shall provide a written request to the Contracting Officer, and the contract shall be modified accordingly.

SECTION C: EVIDENCE OF TECHNICAL ACCEPTABILITY

4. Provide evidence clearly demonstrating that the Offeror is a currently approved electricity supplier in NYISO and is licensed and approved by the New York Public Service Commission (NYPSC) to provide retail electricity supply in NYISO for the account types specified. A printout showing the Offeror is a currently approved retail electricity supplier by NYISO or a letter from NYISO specifying the Offeror is currently approved to deliver retail electricity into the NYISO system is required.

5. Provide evidence that the offeror has firm transmission service agreements and/or network transmission agreements in the Offeror's name with NYISO for the interconnection points between the LDU system and NYISO to effect delivery to the Delivery Points indicated in Exhibit I.

6. Provide evidence that the Offeror either (a) possesses experience providing firm supply and firm transmission of electricity to at least ten (10) retail electric customers with peak annual demands in excess of 1,000 KW within NYISO during the past 12 months; or (b) possesses experience providing firm supply and firm transmission of electricity to one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW within NYISO during the past 12 months. Offerors shall provide the contact persons and telephone numbers for at least one (1) of the ten (10) electric customers provided for this item or the contact person and telephone number for the one customer with multiple accounts that in the aggregate exceeds a peak load of 15,000 KW.

SECTION D: NOTES AND INSTRUCTIONS TO OFFERORS

N/A

ATTACHMENT 17: ANNUAL USAGE ATTESTATION REPORT

(Contractor Name) verifies the following information represents the annual kWh usage by account to the best of Contractor's records. Note that while the below template may be used if the Contractor is serving five or fewer accounts under a specific contract, Contractors may elect to provide this information in an excel spreadsheet or CSV file. If the Contractor elects to provide this information in an excel spreadsheet or CSV file, they must request a template from the GSA Contracting Officer specified in Section C of this solicitation and that template must be submitted back to GSA with the information.

							kWhs												
Utility Account Number	**Utility**	**Service Address Street**	**Service Address City**	**State**	**Contract Start Date**	**Contract End Date**	**Oct**	**Nov**	**Dec**	**Jan**	**Feb**	**Mar**	**Apr**	**May**	**Jun**	**Jul**	**Aug**	**Sep**	**Total kWhs**

NOTE: SUPPLIERS MAY REQUEST AN EXCEL SPREADSHEET OR CSV FILE TO COMPLETE.